

Uganda

Uganda Peoples' Defence Forces Act Chapter 330

Legislation as at 31 December 2023

Note: This is not the latest available version of this Act. [View it online.](#)

There may have been updates since this file was created.

PDF created on 17 March 2026 at 10:18.

Collection last checked for updates: 31 December 2000.

[View online](#)



About this collection

The legislation in this collection has been reproduced as it was originally printed in the Government Gazette, with improved formatting. All amendments have been applied directly to the text and annotated. A scan of the original gazette of each piece of legislation (including amendments) is available for reference.

This is a free download from the ULII website and is presented in collaboration with the Laws.Africa Legislation Collection, a collection of African legislation that is digitised by Laws.Africa and made available for free.

www.ulii.org | info@ulii.org

www.laws.africa | info@laws.africa

FRBR URI: /akn/ug/act/2005/7/eng@2023-12-31

There is no copyright on the legislative content of this document.

This PDF copy is licensed under a Creative Commons Attribution 4.0 License (CC BY 4.0). Share widely and freely.

Uganda Peoples' Defence Forces Act (Chapter 330)

Contents

Part I – Interpretation	1
1. Interpretation	1
Part II – Composition, organs and structures of Defence Forces	4
Composition	4
2. Composition of Defence Forces	4
3. Establishment and composition of Services	5
4. Composition of regular forces	5
5. Sources and organisation of reserve forces	5
Command, appointments, etc.	6
6. Functions of Defence Forces	6
7. Commander-in-Chief of Defence Forces, etc.	6
8. Powers of command	6
9. Powers of command of officers of cooperating and other forces	7
10. Appointments	7
11. Location of units and formations	7
12. Authorised ranks, trades	7
Organs and structures of Defence Forces	8
13. Defence Forces Council	8
14. High Command	8
15. Meetings of Defence Forces Council and High Command	9
16. Attendance of meetings	9
17. Command and Staff Meeting	9
18. Implementation Committee	10
19. Commissions Board	10
20. Unit Promotions Board	11
21. Meetings of Commissions Board	12
22. Policy and administration committees	12
23. Pensions authority and Ministry responsible for defence	12
24. Committees	12
25. Board of inquiry	12
26. Defence Forces Fund	13
Part III – Employment of Defence Forces	13
Continuing full time military service, active service, attachment, secondment, etc.	13
27. Service of members of regular forces	13

28. Inspectorate of Defence Forces	13
29. Reserve forces in peacetime	13
30. Mobilisation of reserve forces and prescribed forces	14
31. Mode of mobilisation	14
32. Annual training	14
33. Punishment for non-attendance	15
34. Discharge on completion of engagement	15
35. Discharge during service	15
36. Restrictions during full time service	15
37. Attachment and secondment	16
Deployment of troops outside Uganda	16
38. Deployment of troops outside Uganda	16
39. Agreement relating to deployment of troops outside Uganda	16
40. Law applicable	16
Aid to civil power	17
41. Aid to civil power	17
42. Officers and militants have powers of police officer	17
43. Other assistance to civil authorities	17
44. General	17
Cooperation with, and attachment, etc. of other forces	17
45. Cooperating forces	17
46. Attachment, etc. to Defence Forces	17
Miscellaneous	18
47. Procurement	18
48. Supply and issue of material	18
49. Commandeering and billeting	18
Part IV – Terms and conditions of service	19
Recruitment and appointment to commissions	19
50. Recruitment	19
51. Enrolment and appointment to commission	19
52. Oaths on enrolment	20
53. Re-engagement	20
Promotion, acting rank, temporary rank and honorary rank	20
54. Considerations for promotion	20
55. Board to consult	21

56. Board to summon persons	21
57. Allowance for attending meeting of Board	21
58. False information to Board	21
59. Unauthorised disclosure	21
60. Demotion	21
61. Reward for distinguished service	22
62. Acting rank and temporary rank	22
63. Honorary rank	22
Release and suspension	22
64. Dismissal	22
65. Resignation of commission	23
66. Discharge	23
67. Entitlement to release and exceptions	23
68. Suspension	24
Financial and other matters	24
69. Pay and allowances	24
70. Service pensions and gratuities	24
71. Maximum pension	24
72. Gratuity and reduced pension	25
73. Reduction of establishment	25
74. Grant of pension, etc. on dismissal	25
75. Additional service	25
76. Emergency or recall	25
77. Death and disability pensions and gratuities	25
78. Entitlement on disablement or death	26
79. Payment of pension	27
80. Pensions and gratuities charged on Consolidated Fund	27
81. Payment of pensions, etc. in respect of veterans	27
82. Income tax	28
83. Bankruptcy	28
84. Imprisonment	28
85. Assignability of pension	28
86. Seconded personnel	28
87. Parliamentary representatives	28
88. Soldiers on remand, detention, bail, etc.	29

89. Appeals from decisions of pensions authority	29
General	29
90. Service of professionals	29
91. Bonds	29
92. Leave	29
93. Medical and other services	30
94. Accommodation	30
95. Transport	30
96. Marriage	30
97. Political office	30
98. Administration of oaths	30
99. Redress of wrongs	30
100. Other provisions	31
Appointment of civilians	31
101. Appointment of civilian employees	31
102. Number of civilian employees	31
103. Preliminaries to appointment	32
104. Manner of appointment	32
105. Length of appointment	33
106. Place of service	33
107. Standard of work	33
108. Secrecy	33
109. Delivery of documents	34
110. Conditions of service of civilian professionals and quasi-professionals	34
111. Conditions of service of other civilian employees	34
112. Appointment not pensionable	34
113. Other conditions of service	34
114. End of appointment	34
115. Bonding of civilians	35
Part V – Persons subject to military law	35
116. Code of conduct for Defence Forces	35
117. Persons subject to military law	35
Part VI – Offences	37
Operational offences and offences relating to security	37
118. Cowardice in action	37

119. Breaching concealment	37
120. Failure to protect war materials, etc.	38
121. Failure to brief, etc.	38
122. Personal interests endangering operational efficiency	39
123. Careless shooting in operation	39
124. Offences relating to operations	39
125. Offences relating to prisoners of war	40
126. Offences by persons in command when in action	40
127. Treachery	40
128. Offences relating to security	40
129. Offences relating to guard duties	41
Mutiny	42
130. Mutiny	42
Insubordination	42
131. Disobeying lawful orders	42
132. Failure to execute one's duties	42
133. Violence to superior officer	43
134. Insubordinate behaviour	43
Disgraceful conduct	43
135. Spreading harmful propaganda	43
136. Malingering or maiming	43
137. Drunkenness	44
138. Taking or possessing drugs	44
139. Abuse of and violence to inferiors	44
140. False accusation, etc.	44
141. Quarrels and disturbances	44
142. Disorders	44
143. Scandalous conduct by officers	45
Desertion and absence without leave	45
144. Desertion	45
145. Connivance at desertion	46
146. Absence without leave	46
147. False statement in respect of leave	46
Offences relating to vessels, aircraft and vehicle	46
148. Offences relating to convoys	46

149. Losing, stranding or hazarding vessels or aircraft	46
150. Wrongful acts in relation to aircraft, etc.	47
151. Attempt to hijack aircraft, vessel, etc.	47
152. Dangerous acts in relation to aircraft	47
153. Disobedience of commander's orders	47
154. Inaccurate certificate	47
155. Low flying	48
156. Unauthorised use of vehicles	48
157. Improper driving of vehicles	48
Offences relating to other property	48
158. Protection of defence stores	48
159. Unlawful purchase, etc. of military stores	49
160. Destruction, loss or improper disposal of property	49
161. Selling or pawning decorations	50
162. Unauthorised sale or wearing of uniforms, etc.	50
163. Causing fire	50
Offences relating to process of law, arrests, service custody and military courts	50
164. Interfering with process of law	50
165. Negligent or wilful interference with custody	51
166. Escape from custody	51
167. Obstruction of arresting officers	51
168. Unlawful detention of person	51
169. Offences in respect of military courts	51
Miscellaneous offences	52
170. Disturbance in billets, etc.	52
171. Offences in relation to documents	52
172. Obstructing Defence Forces	52
173. Harboursing, aiding or inducing members of Defence Forces to dereliction of duty	53
174. Other fraudulent offences	53
175. Offences in relation to redress of wrongs	54
176. Conduct prejudicial to good order and discipline	54
General	54
177. Service trial of civil offences	54
178. Conspiracy	55
179. Conviction for related or less serious offences	55

180. Ignorance no excuse	55
181. Rules of civil courts applicable	55
182. Aiding and abetting commission of offence, etc.	55
Part VII – Arrests, searches and handling of persons arrested	56
183. Arrests generally	56
184. Search of members or premises	57
185. Appointment and powers of specially appointed personnel	58
186. Handling of persons arrested	58
187. Irregular detention	58
188. Report of delay of trial	59
Part VIII – Military courts	60
Summary trial authority	60
189. Trial by commanding officer or officer commanding	60
190. Trial by superior authority	60
191. Offences triable by summary trial authority and limitation on sentencing	61
Unit disciplinary committees and courts martial	61
192. Division court martial	61
193. Unit disciplinary committee	61
194. Convening authority	62
195. General Court Martial	62
196. Provisions applying to division courts martial and General Court Martial	62
197. Court Martial Appeal Court	62
198. Field court martial	63
199. Decisions of courts martial and unit disciplinary committees	63
200. Staff of court	63
201. Ineligibility to serve on field court martial	63
202. Jurisdiction of civil court	63
Part IX – Trials	64
203. Summary trial	64
204. Additional powers of summary trial authority	65
205. Appeals from decisions of summary trial authority	65
206. Action on appeal	65
207. Principles of civil court to be observed generally	65
208. No limitation on jurisdiction	65
209. Place of trial	65

210. Trials to be public	66
211. View by military court	66
212. Witnesses and advocates at military courts	66
213. Provisions where accused found insane	67
214. Autrefois acquit and autrefois convict	67
215. Proceedings to be deemed judicial proceedings	67
216. Orders of court	67
217. Bail	68
218. Cases not covered by Act	68
Part X – Punishments	68
219. Scale of punishments	68
Part XI – Post trial matters	70
220. Committal	70
221. Temporary removal from incarceration	70
222. Rules of civil prisons to apply	70
223. Validity and correction of committal documents	70
224. Execution of warrants	70
Part XII – Appeals	70
225. Jurisdiction of appellate courts	70
226. Advice as to right of appeal	71
227. Form of appeal	71
228. Appellant in prison	71
229. Bail pending appeal	71
230. Notice of hearing	71
231. Supplementary powers of the appellate court	72
232. Non-compliance	72
233. Disallowing appeal	72
234. Setting aside finding, etc.	72
235. Punishments subject to mitigation	73
236. Quashing findings of unit disciplinary committee or court martial	73
237. Substituting of findings for original findings of unit disciplinary committee or court martial	74
238. New trial	74
239. Substitution of punishments	74
240. Mitigation of punishments, etc.	75
241. Effect of new punishment	75

242. Non-derogation of powers	75
243. Saving of powers of President	75
244. Rules of appeal procedure	75
Part XIII – Revision	76
245. Power of court to call for record and petitions	76
246. Powers of court on revision	76
247. Discretion of court as to hearing of parties	76
248. Court order to be certified to lower court	76
Part XIV – General	77
249. Expenses of military courts	77
250. Regulations	77
251. Orders and instructions	78
252. Power to amend Schedules	78
Schedule 1 (Sections 1, 252(1))	78
Schedule 2 (Sections 13(1)(b), 252(1))	78
Schedule 3 (Sections 14(1)(c), 252(1))	79
Schedule 4 (Sections 51(8), 252(1))	79
Schedule 5 (Sections 52, 252(1))	79
Schedule 6 (Sections 52, 252(1))	80
Schedule 7 (Sections 116, 252(2))	80
Schedule 8 (Sections 191(1), 252(1))	82

Uganda

Uganda Peoples' Defence Forces Act Chapter 330

[Published in Uganda Gazette 56 on 2 September 2005](#)

Assented to on 23 August 2005

Commenced on 2 September 2005

[This is the version of this document as it was at 31 December 2023 to 26 June 2025.]

[Note: This legislation was revised and consolidated as at 31 December 2000 and 31 December 2023 by the Law Reform Commission of Uganda. All subsequent amendments have been researched and applied by Laws.Africa for ULII.]

[Amended by [Law Revision \(Miscellaneous Amendments\) Act, 2023 \(Act 17 of 2023\)](#) on 28 July 2023]

An Act to provide for the regulation of the Uganda Peoples' Defence Forces in accordance with Article 210 of [the Constitution](#), and for related matters.

[Revisers'note: Sections 118(1), 119(1), 120(1), 121(1), 125,127(d), 128(1), 130(1), 131(1), 132(1), 135(1), 144(l)(d), 148, 149, 150, and 151 impose a sentence of death. However, section 6(7) of the Law Revision (Penalties in Criminal Matters) Miscellaneous (Amendment) Act provides that a sentence of death imposed by any court or tribunal established under the Uganda Peoples' Defence Forces Act shall only be carried out after it has been confirmed by the Supreme Court and upon an order of the President.]

[Act 7/2005; Act 17/2023]

Part I – Interpretation

1. Interpretation

In this Act, unless the context otherwise requires—

“**active service**” means service—

- (a) in operation against an enemy or in a foreign country, in operations for the protection of life or property, or relating to the military occupation of a foreign country;
- (b) in operations for the preservation of order;
- (c) for purposes of relief in case of emergency;
- (d) in aid to the civil power; and
- (e) for any other purpose that appears to the Defence Forces Council to be expedient;

“**advocate**” means an advocate admitted and enrolled under [the Advocates Act](#);

“**aircraft**” includes any machine for flying whether propelled by mechanical means or not, and any description of balloons;

“**aircraft material**” includes—

- (a) parts or components of, or accessories for, aircraft, whether for the time being in aircraft or not;
- (b) engines, armament, ammunition and bombs and other missiles of any description in or for use in aircraft;
- (c) any other gear, apparatus or instruments in or for use in aircraft;

- (d) any apparatus used in connection with the taking off, landing, or detecting the movements of, aircraft; and
- (e) any fuel used for the propulsion of aircraft and any material used as a lubricant for aircraft material;

“appellate court” means the Court Martial Appeal Court or, as the case may be, the General Court Martial;

“appropriate civil authority”, means the President, a minister, the Inspector General of Police, a Resident District Commissioner, or a district police commander;

“auxiliary forces” means home guards, local defence forces and vigilantes;

“Board” means, in the case of officers, the Commissions Board established by section 19, and in the case of militants, the Unit Promotions Board established by section 20;

“civil custody” includes the holding under arrest or under confinement of a person by the police or other competent civil authority and confinement in a civil prison;

“civil court” means a court of ordinary criminal jurisdiction in Uganda;

“civil power” means the Government and includes a local government;

“commanding officer” in respect of a person, means the commanding officer or officer commanding of that person or such other officer as is, by this Act or regulations made under this Act, empowered to act as the commanding officer or officer commanding of that person;

“cooperating forces” means the defence forces of any country other than Uganda, declared to be cooperating forces under section 45;

“court martial” means a field court martial, the General Court Martial or Court Martial Appeal Court;

“currency point” has the value assigned to it in Schedule 1 to this Act;

“defence establishment” means any establishment designated by the Defence Forces Council or any person authorised for that purpose by the Defence Forces Council to be a defence establishment, and includes any property in the defence establishment;

“Defence Forces” means the Uganda Peoples' Defence Forces;

“Defence Forces Council” means the Uganda Peoples' Defence Forces Council provided for in section 13;

“deploying authority” means the chairperson of the High Command or any officer designated as deploying authority; and without prejudice to the foregoing, means, in respect of section 196, the division commander;

“emergency” includes war emergency and public emergency;

“enemy” means all persons engaged in operations against the Defence Forces; and includes armed mutineers, rebels, armed rioters and pirates;

“enrol” means to cause any person to become a member of the Defence Forces, and includes re-engagement;

“formation” means a brigade, division or higher organisational structure of units of the Defence Forces;

“junior officer” means any body from the rank of second lieutenant to captain;

“lawful order” includes any order or instruction given by a competent authority to a member of the Defence Forces;

“liquor” means any spirits (including refined spirits), wine, ale, beer, porter, cider, perry, hop beer or any drink containing more than two percent by weight of absolute alcohol, but does not include native liquor;

“material” means all movable public property, other than money, provided for the Defence Forces or for any other purpose under this Act, and includes any vessel, vehicle, aircraft, animal, missile, arms, ammunition, clothing, stores, provisions or equipment so provided;

“military court” means a summary trial authority, a unit disciplinary committee or a court martial;

“military law” in the expression “subject to military law” means Parts [V](#) to [XIV](#) of this Act;

“militant” means any person other than an officer who is enrolled in or who is attached or seconded otherwise than as an officer to the Defence Forces;

“Minister” means the Minister responsible for defence;

“Ministry” means the Ministry responsible for defence;

“officer” means—

- (a) a person commissioned by the President to the Defence Forces; and
- (b) any person who is attached or seconded as an officer to the Defence Forces;

“original member of High Command” means a member of the former National Resistance Army, who was a member of the High Command on the 26th January, 1986;

“peace enforcement” means the deployment of troops under Chapter 7 of the Charter of the United Nations;

“peace keeping” means the deployment of troops under Chapter 6 of the Charter of the United Nations;

“pensions authority” has the meaning assigned to it in the Pensions Act;

“pensionable emoluments” means the rate of salary in issue to an officer or a militant at the time of retirement or discharge; or to an officer or a militant of equivalent rank to the retired or discharged officer or militant at the time of his or her retirement or discharge;

“Permanent Secretary” means the Permanent Secretary of the Ministry;

“possession” by any person means—

- (a) having in his or her own personal possession;
- (b) knowingly having in the actual possession or custody of any other person; or
- (c) knowingly having in any place, whether belonging to or occupied by himself or herself or not, for the use or benefit of himself or herself or any other person;

“prescribed force” means any service prescribed by Parliament under section [2\(4\)\(c\)](#);

“public officer” and “public service” have the same meaning as in [the Constitution](#);

“release” means, except for the purposes of section [87](#), the termination of the service of an officer or a militant in any manner;

“reckonable service” means continuous full pay service in the Uganda Peoples' Defence Forces; and includes, any prior full pay service in any other Defence Forces of Uganda by whatever name called or in any other forces recognised by the Defence Forces Council in respect of which a pension is not in issue or for which a gratuity has not been granted, subject to such exclusions as may be prescribed;

“reservist” means a member of the reserve forces;

“senior army officer” means an officer of the then National Resistance Army who held the substantive rank of senior officer on 26th January, 1986;

“senior officer” means a person of the rank of Major or above as per the highest rank offered in the establishment at the time;

“**service**” means service in the Defence Forces;

“**Service**” means a component part of the Defence Forces specified in section [2\(4\)](#);

“**Service Chief of Staff**” means a Service Chief of Staff specified in section [7\(2\)\(f\)](#) or [\(g\)](#);

“**Service Commander**” means a service commander specified in section [7\(2\)\(c\)](#), [\(d\)](#) or [\(h\)](#);

“**service custody**” means the holding under arrest or in confinement of a person by the Defence Forces, and includes confinement in a service prison or detention barracks;

“**service detainee**” means a person who is under a sentence that includes a punishment of detention imposed upon him or her under this Act;

“**service offence**” means an offence under this Act or any other Act for the time being in force, committed by a person while subject to military law;

“**service prisoner**” means a person who is under a sentence that includes a punishment of imprisonment imposed upon him or her under this Act;

“**stoppages**” means the recovery, by deductions from the pay of an offender, of a specified sum of money by way of compensation for any expense, loss or damage occasioned by the offence;

“**summary trial**” means an informal trial of a minor offence conducted by a summary trial authority under section [203](#) by which the accused has duly opted to be tried;

“**summary trial authority**” means a commanding officer or an officer commanding in exercise of his or her powers of summary trial under section [189](#) or a superior authority;

“**superior authority**” means, except for the purpose of section [251](#), the Chief of Defence Forces, Service Commanders, the Chief of Staff, or Service Chiefs of Staff in exercise of the powers of summary trial under section [189](#);

“**superior officer**” means any officer or militant who, in relation to any other officer or militant is, by this Act or by regulations made under this Act or by custom of the Defence Forces, authorised to give a lawful order to that other officer or militant;

“**unit**” means a unit of battalion strength or any other unit as declared by the Defence Forces Council;

“**war materials**” includes arms, ammunition, parts of arms, explosives and other materials ordinarily reserved for the Defence Forces and shall include such other materials that are so declared by the Defence Forces Council.

Part II – Composition, organs and structures of Defence Forces

Composition

2. Composition of Defence Forces

- (1) There shall be armed forces to be known as the Uganda Peoples' Defence Forces.
- (2) The Uganda Peoples' Defence Forces shall be non-partisan, national in character, patriotic, professional, disciplined, productive and subordinate to civilian authority.
- (3) Members of the Uganda Peoples' Defence Forces shall be citizens of Uganda and of good character.
- (4) The Uganda Peoples' Defence Forces shall be composed of the following services—
 - (a) the land forces;
 - (b) the air forces; and

(c) any other service prescribed by Parliament.

(5) The President in the Defence Forces Council shall determine the strength of the Defence Forces.

3. Establishment and composition of Services

(1) Each of the Services of the Defence Forces shall consist of—

- (a) the regular forces; and
- (b) the reserve forces.

(2) Each regular force, reserve force or any prescribed force shall consist of such units and shall be under the immediate supervision and control of such officers as may be prescribed by the Defence Forces Council.

4. Composition of regular forces

Each regular force shall consist of—

- (a) officers commissioned by the President;
- (b) militants enrolled in accordance with regulations made under this Act for the purpose of rendering continuous service during the period of their engagement; and
- (c) such other officers and militants as are attached to the regular force under arrangements made by the Government.

5. Sources and organisation of reserve forces

(1) The sources of the reserve forces shall include—

- (a) personnel seconded from the regular forces;
- (b) retired officers and discharged militants;
- (c) auxiliary forces, state security organisations and such other citizens of Uganda as have undergone military training under Article 17(2) of [the Constitution](#).

(2) Membership of the reserve forces shall be restricted on the basis of the following criteria—

- (a) human resource requirement determined by threat analysis and other security considerations;
- (b) age;
- (c) health, especially physical as well as mental fitness; and
- (d) any other factors as may be determined by the High Command and the Defence Forces Council.

(3) Notwithstanding subsection (2), whenever the need arises, any retired officer or discharged militant or any member of the auxiliary forces who has not been absorbed into the reserve forces may be called upon for service in the reserve forces.

(4) The regulations made under this Act shall define the sources of the reserve forces, the command structure, command authority and command relationship within the reserve forces and between the reserve forces and the regular forces.

Command, appointments, etc.

6. Functions of Defence Forces

The functions of the Defence Forces are—

- (a) to preserve and defend the sovereignty and interior integrity of Uganda;
- (b) to cooperate with civilian authority in emergency situations in cases of natural disasters;
- (c) to foster harmony and understanding between the Defence Forces and civilians; and
- (d) to engage in productive activities for the development of Uganda.

7. Commander-in-Chief of Defence Forces, etc.

- (1) As provided in Article 98(1) of [the Constitution](#), the President shall be the Commander-in-Chief of the Defence Forces.
- (2) The Commander-in-Chief may appoint—
 - (a) an officer of the Defence Forces to be known as the Chief of Defence Forces to be head of the Defence Forces, who shall be responsible for the command, control and administration of the Defence Forces;
 - (b) an officer of the Defence Forces to be known as the Deputy Chief of Defence Forces;
 - (c) an officer of the Defence Forces to be known as the Commander Land Forces, who shall be responsible for the command, control and administration of the land forces;
 - (d) an officer of the Defence Forces to be known as the Commander Air Forces, who shall be responsible for the command, control and administration of the air forces;
 - (e) an officer of the Defence Forces to be known as the Chief of Staff, who shall be responsible for the control and administration of the Defence Forces;
 - (f) an officer of the Defence Forces to be known as Land Forces Chief of Staff, who shall be responsible for the control and administration of the land forces;
 - (g) an officer of the Defence Forces to be known as Air Forces Chief of Staff, who shall be responsible for the control and administration of the air forces;
 - (h) such other officer of the Defence Forces under such title as the Commander-in-Chief may deem fit to be the commander of any Service of the Defence Forces prescribed under section [2\(4\)\(c\)](#), who shall be responsible for the command, control and administration of that Service and shall be responsible to the Chief of Defence Forces;
 - (i) officers of the Defence Forces to command units and formations of the Services, who shall be responsible for the command, control and administration of the units;
 - (j) officers of the Defence Forces to head departments of the Services, who shall be responsible to the relevant service Chief of Staff for the management of the departments; and
 - (k) such advisers and assistants or any other officer in the office of the Commander-in-Chief of the Defence Forces as he or she deems necessary to assist him or her in the exercise of the duties of that office.

8. Powers of command

The authority and powers of command of the officers and militants of the Defence Forces shall be as prescribed in regulations made under this Act.

9. Powers of command of officers of cooperating and other forces

- (1) Where—
 - (a) under section 45, the President declares that any force is a force acting in cooperation with the Defence Forces or any part of the Defence Forces; or
 - (b) under section 46, any member of a force to which that section applies is attached or seconded to the Defence Forces,a member of such cooperating force or, as the case may be, the person so attached or seconded, shall be treated, and shall have the like powers of command and, in the case provided for in paragraph (b) of this subsection, of discipline over members of the Defence Forces as if he or she were a member of the Defence Forces of equivalent rank.
- (2) The regulations made under this Act may provide that a member of the military, naval or marine or air forces of any other country who is acting in association with the Defence Forces shall be accorded courtesy precedence consonant with his or her rank and, in any case where it is considered necessary or expedient for furthering such association, such authority and powers of command as may be specified in the regulations.

10. Appointments

- (1) The Command appointments of formations, units and other elements of the Defence Forces which, by the establishment of the Defence Forces, are commanded or headed by officers of the established rank for the appointment of battalion commander or above shall be made by the Commander-in-Chief in consultation with the Chief of Defence Forces.
- (2) The Command appointments of units and other elements of the Defence Forces which, by the establishment of the Defence Forces, are commanded or headed by officers below the established rank for the appointment of battalion commander shall be made by the Chief of Defence Forces.
- (3) The appointment of militants to hold appointments in the Defence Forces shall be by the unit commander or head of department, as the case may be, in consultation with the Chief of Personnel and Administration of the Defence Forces.
- (4) The considerations set out in section 54(1) shall, as far as possible, apply when considering an officer or a militant for an appointment.

11. Location of units and formations

- (1) The permanent locations of units and formations of the Defence Forces within Uganda shall be determined by the Commander-in-Chief in consultation with the High Command.
- (2) The Chief of Defence Forces may, when he or she considers it necessary so to do by reason of training requirements or operational necessity, exercise the powers conferred upon the Commander-in-Chief by subsection (1) and shall notify the Minister of any action taken in that regard; except that the Chief of Defence Forces shall not authorise the permanent re-allocation of any unit or detachment.

12. Authorised ranks, trades

- (1) The various ranks for officers and militants of the Defence Forces and seniority within those ranks shall be in accordance with regulations made under this Act.
- (2) The Defence Forces Council may determine the maximum number of persons in each rank and trade group in the Defence Forces.

Organs and structures of Defence Forces

13. Defence Forces Council

- (1) There shall be established, for the purposes of this Act, a Uganda Peoples' Defence Forces Council consisting of—
 - (a) the members of the High Command;
 - (b) the persons who were senior army officers on the 26th day of January 1986, whose names are set out in Schedule 2 to this Act;
 - (c) all directors of Services established under this Act; and
 - (d) commanding officers of brigades and battalions and officers commanding equivalent units of the Defence Forces.
- (2) The Chairperson of the Uganda Peoples' Defence Forces Council shall be the President, and in the absence of the President, the Vice President, and in the absence of the Vice President, the Minister and in the absence of the Minister, such other person as the President may appoint.
- (3) The Defence Forces Council shall—
 - (a) advise the President on all matters connected with the control and administration of the Defence Forces;
 - (b) be responsible for giving professional advice on military defence policy generally; and
 - (c) perform such duties as may be conferred upon it by law.

14. High Command

- (1) There is established under this Act the High Command of the Defence Forces consisting of—
 - (a) the President, who shall be the chairperson;
 - (b) the Minister;
 - (c) members of the High Command on 26th January, 1986 whose names are set out in Schedule 3 to this Act;
 - (d) the Chief of Defence Forces;
 - (e) the Deputy Chief of Defence Forces;
 - (f) all Service Commanders;
 - (g) the Chief of Staff;
 - (h) all Service Chiefs of Staff;
 - (i) all chiefs of the Services of the Defence Forces;
 - (j) all commanders of any formations higher than a division that the President may, in consultation with the High Command, establish;
 - (k) all division commanders, officers commanding equivalent units of the Defence Forces and the commandant of the general headquarters;
 - (l) such commanders of the military wing of the liberation organisations specified in section [81\(3\)](#); as may be co-opted by the President; and
 - (m) such other commanders and experts as are co-opted by the President to advise the High Command.

(2) The High Command shall—

- (a) advise the President in emergency situations and on matters relating to national security or deployment of the Defence Forces;
- (b) advise the President when Uganda is at war;
- (c) perform such duties as may be conferred upon the High Command by law; and
- (d) perform such other functions as the President may direct.

15. Meetings of Defence Forces Council and High Command

The meetings of the Defence Forces Council and the High Command shall be regular in each year, but shall not be less than three in every calendar year.

16. Attendance of meetings

A senior army officer or an original member of the High Command, shall not be entitled to sit or take part in the proceedings of the Defence Forces Council or the High Command if—

- (a) he or she has been convicted of any offence; or
- (b) there is a criminal case pending against him or her in a court of law, other than a traffic offence.

17. Command and Staff Meeting

(1) There is established under this Act the Command and Staff Meeting of the Defence Forces.

(2) The Command and Staff Meeting shall consist of—

- (a) the Chief of Defence Forces, who shall be the chairperson;
- (b) the Deputy Chief of Defence Forces;
- (c) all Service Commanders;
- (d) the Chief of Staff;
- (e) all Service Chiefs of Staff;
- (f) all chiefs of departments of the Services of the Defence Forces;
- (g) all commanders of any formations higher than a division that the President may, in consultation with the High Command, establish;
- (h) all division commanders and the commandant of the general headquarters of the Defence Forces;
- (i) commanding officers of independent units;
- (j) all brigade commanders; and
- (k) all directors in departments of the Services.

(3) The Chief of Defence Forces may co-opt persons in possession of technical or professional knowledge to advise the meeting whenever necessary.

(4) The Command and Staff Meeting shall—

- (a) formulate policy for consideration and approval by the High command and the Defence Forces Council; and
- (b) perform such other functions as the Chief of Defence Forces may direct.

- (5) The meetings of the Command and Staff Meeting shall be regular in each year, but shall not be less than four in each calendar year.

18. Implementation Committee

- (1) There shall be an Implementation Committee of the Defence Forces responsible for supervising and ensuring implementation of the decisions of the staff meetings and Command meetings, the High Command and the Defence Forces Council.
- (2) The Implementation Committee shall consist of—
- (a) the Chief of Staff, who shall be the chairperson;
 - (b) all Service Chiefs of Staff;
 - (c) all chiefs of departments of the Services of the Defence Forces;
 - (d) all commanders of any formations higher than a division that the President may, in consultation with the High Command, establish;
 - (e) all division commanders and the commandant of the general headquarters of the Defence Forces;
 - (f) all directors in departments of the Services; and
 - (g) commanding officers of independent units.
- (3) The Implementation Committee shall meet at least once in each month.

19. Commissions Board

- (1) There is established a board to be known as the Commissions Board which shall consist of—
- (a) the Chief of Defence Forces, who shall be the chairperson;
 - (b) the Deputy Chief of Defence Forces;
 - (c) all Service commanders;
 - (d) the Chief of Staff;
 - (e) the Chief of Operations and Training of each Service;
 - (f) all Service Chiefs of Staff;
 - (g) the chief of personnel and administration of each Service, one of whom shall be the secretary;
 - (h) the Chief of Military Intelligence and Security of each Service;
 - (i) the Chief Political Commissar of each Service;
 - (j) the Chief of Legal Services of each Service;
 - (k) the commandant of the general headquarters of the Defence Forces; and
 - (l) the Chief of Career Planning of each Service.
- (2) The Chairperson of the Commissions Board may co-opt commanders and technical persons or experts to advise the Commissions Board.
- (3) The functions of the Commissions Board shall be—
- (a) to give advice to the President in respect of appointment of persons to commissions in the Defence Forces;

- (b) to select officers to undergo courses;
 - (c) to recommend officers to undertake promotions examinations after successful completion of the requisite courses and after such periods thereafter as shall be prescribed;
 - (d) to give advice to the President on the promotion of officers to different ranks in the Defence Forces;
 - (e) to receive officers' grievances relating to promotions and to find solutions to those grievances; and
 - (f) to monitor the retirement of officers due for retirement and to determine any termination of service.
- (4) In the absence of the Chief of Defence Forces, the Deputy Chief of Defence Forces shall preside at a meeting of the commissions board.

20. Unit Promotions Board

- (1) There is established a Unit Promotions Board for each unit of the Defence Forces which shall consist of—
- (a) the commanding officer, who shall be the chairperson;
 - (b) the officer in charge of operations and training;
 - (c) the adjutant, who shall be the secretary;
 - (d) the intelligence officer;
 - (e) the Political Commissar;
 - (f) all officers in charge of companies; and
 - (g) the regimental sergeant major.
- (2) The Unit Promotions Board, in the case of medical personnel, shall be constituted as follows—
- (a) the commanding officer who shall be the chairperson;
 - (b) the second in command of the unit;
 - (c) the adjutant, who shall be the secretary;
 - (d) the intelligence officer;
 - (e) the Political Commissar;
 - (f) all heads of department; and
 - (g) the regimental sergeant major.
- (3) The functions of the Unit Promotions Board shall be—
- (a) to select militants to undergo courses;
 - (b) to recommend militants to undertake promotions examinations after successful completion of the requisite courses and after such periods as shall be prescribed;
 - (c) to give advice to the Chief of Defence Forces on the promotion of militants up to the rank of warrant officer;
 - (d) to receive militants' grievances relating to promotions and find solutions to those grievances; and

- (e) to monitor the discharge of militants due for discharge and to determine any termination of service.
- (4) In the absence of the commanding officer, the officer in charge of operations and training or in the case of medical, the second in command of the unit shall preside at a meeting of the Unit Promotions Board.

21. Meetings of Commissions Board

- (1) The Commissions Board shall meet for the discharge of its functions as often as business requires and in any case at least once in every three months at a time and place that the chairperson may appoint.
- (2) The quorum at a meeting of the Commissions Board shall be five members.
- (3) The questions proposed at a meeting of the Commissions Board shall be determined by consensus.

22. Policy and administration committees

- (1) There shall be a unit policy and administration committee for each unit of the Defence Forces which shall consist of—
 - (a) the commanding officer of the unit who shall be the chairperson;
 - (b) all heads of department;
 - (c) all officers of the unit; and
 - (d) the regimental sergeant major.
- (2) The unit policy and administration committee shall be responsible for—
 - (a) implementation of policies of the Defence Forces in the unit; and
 - (b) formulation and supervision of administrative policies of the unit.
- (3) The unit policy and administration committee shall sit at least once in every three months.

23. Pensions authority and Ministry responsible for defence

- (1) The pensions authority shall be responsible for the assessment, grant and payment of pensions and gratuities under sections [69](#), [70](#), [71](#), [72](#), [73](#), [74](#), [75](#), [76](#), [77](#), [78](#), [79](#) and [80](#) and other similar matters prescribed by or under this Act.
- (2) The Ministry responsible for defence shall facilitate the assessment, grant and payment of pensions and gratuities under this Act by the pensions authority.

24. Committees

The President may, in consultation with the Defence Forces Council, create and appoint committees for the proper administration of the Defence Forces.

25. Board of inquiry

- (1) The President or any person authorised for the purpose by the President, or any prescribed person may, where the President or such person thinks it expedient that information on any matter connected with the Government, discipline, administration, material or functions of the Defence Forces or affecting any officer or militant is necessary, appoint a board of inquiry for investigating and reporting on that matter.

- (2) The board of inquiry shall be constituted and its procedure shall be in accordance with regulations made under this Act.

26. Defence Forces Fund

- (1) There is established a fund to be known as the Defence Forces Fund.
- (2) All fines imposed for any offence under this Act, gifts, donations, proceeds of sale of farm produce and funds generated by any other projects managed by or on behalf of the Defence Forces shall be paid into the Defence Forces Fund.
- (3) The funds paid into the Defence Forces Fund shall be utilised in accordance with regulations made under this Act.

Part III – Employment of Defence Forces

Continuing full time military service, active service, attachment, secondment, etc.

27. Service of members of regular forces

Every member of a regular force shall be on continuing military service and shall at all times be liable to be employed on active service.

28. Inspectorate of Defence Forces

- (1) There is established an Inspectorate of Defence Forces which shall be headed by the Inspector General of Defence Forces.
- (2) The Inspector General of Defence Forces shall be answerable to the Chief of Defence Forces.
- (3) The functions of the Inspectorate of Defence Forces shall be to—
 - (a) ensure accountability and transparency within the Defence Forces;
 - (b) combat graft and generally ensure professionalism and modernisation of the Defence Forces;
 - (c) ensure that all work and tasks assigned to particular departments and offices are discharged within the set period;
 - (d) promote and foster strict adherence to the rule of law, human rights and principles of natural justice in the armed forces; and
 - (e) perform such other functions as the Chief of Defence Forces may assign.

29. Reserve forces in peacetime

During peacetime, the functions of the reserve forces shall be the following—

- (a) production;
- (b) mobilisation and sensitisation of the civilian population;
- (c) supporting the maintenance of security in Uganda;
- (d) supporting the civil authorities in the case of disasters; and
- (e) reinforcing civil authorities with professional skills as the need arises.

30. Mobilisation of reserve forces and prescribed forces

- (1) The Commander-in-Chief may order the whole or any part of any reserve force or any prescribed force to be on continuing full time military service for a period as he or she may determine.
- (2) Upon an order being made under subsection (1), the reserve force or prescribed force to which the order relates shall be liable to be employed on active service.
- (3) When mobilised for continuing full time military service, the functions of the officers and militants of the reserve forces mobilised shall be—
 - (a) in the case of war, during the pre-hostilities phase—
 - (i) to gather intelligence and disorganise the enemy's war preparations; and
 - (ii) to mobilise logistics such as commandeering transport in support of the war effort;
 - (b) during the combat phase—
 - (i) to operate covertly behind enemy lines;
 - (ii) to reinforce, when necessary, the regular forces in combat;
 - (iii) to assist in the evacuation of casualties;
 - (iv) to participate in the logistic support chain;
 - (v) to mobilise and sensitise the population in the theatre of operations against the enemy and in support of the war effort; and
 - (vi) to carry out any other duties in the rear assigned by command in support of the war effort; and
 - (c) after hostilities, to participate in operations to pacify the country.
- (4) Where the reserve forces or any prescribed forces have been mobilised under an order made under subsection (1), the officers and militants of the reserve forces or any prescribed force or part of it to which the order applies shall, during the continuance of the order, be deemed for all purposes, except for such purposes as may be prescribed in the order, be part of the corresponding regular forces.
- (5) During peacetime, the respective civil authorities in whose employment they are, shall remunerate members of the reserve forces and, at the same time, the reserve forces command shall identify and organise income-generating projects for the benefit of reservists as well as to support the national economy.

31. Mode of mobilisation

Whenever the reserve forces or any prescribed forces are required, the following two methods of mobilisation may be used—

- (a) the silent method, whereby only those reservists or members of a prescribed force required will be notified and mobilised;
- (b) the loud method, by which the whole of a reserve force is mobilised through the use of radio and other electronic media to respond quickly to a surprise attack or similar emergency.

32. Annual training

- (1) Every reservist or member of a prescribed force shall be liable to be called out for training at such place and for such periods not exceeding thirty days in any one year as may be specified in regulations made under his Act.

- (2) Every reservist or member of a prescribed force may, during any training for which he or she may be called, be attached to and trained with any unit of the regular forces.

33. Punishment for non-attendance

- (1) Any reservist or member of a prescribed force who, without leave, lawfully granted or other reasonable excuse, fails to appear at the time and place appointed for annual training, or when called out in aid of the civil power under sections [41](#) and [43](#) or on continuing full time military service—
 - (a) if called out on continuing full time military service, commits an offence of desertion under section [144](#) or of absenting himself or herself without leave under section [146](#); or
 - (b) if called out in aid of the civil power or for annual training, commits an offence of absenting himself or herself without leave under section [146](#).
- (2) Any reservist who commits any offence under this section is liable to be tried by a military court and to be punished in accordance with the punishment provided for the offence under this Act.
- (3) Section [182](#) shall apply to reservists and members of a prescribed force who commit an offence under this section as it applies to persons otherwise subject to this Act.

34. Discharge on completion of engagement

- (1) Every reservist who has completed his or her period or periods of reserve service or engagement according to this Act or regulations made under this Act, shall be discharged from the reserve forces, unless at the expiration of any period he or she is undergoing punishment for, or stands charged as a person subject to this Act with the commission of, any offence under this Act.
- (2) Where a reservist is undergoing such punishment or is charged with any offence, his or her service shall be prolonged, and his or her discharge deferred until the punishment is terminated or until he or she has undergone his or her trial and any punishment imposed in respect of the offence with which he or she is charged.

35. Discharge during service

A reservist may be discharged by the competent military authority at any time during the currency of any term of reserve service or engagement—

- (a) when pronounced by a medical officer to be mentally or physically unfit for further service; or
- (b) if for any reason his or her services are no longer required.

36. Restrictions during full time service

- (1) Subject to subsection [\(2\)](#), no officer or militant on continuing full time military service shall engage in any civil employment or undertaking which—
 - (a) is or is likely to be detrimental to the interests of the Defence Forces;
 - (b) reflects or is likely to reflect discredit upon the Defence Forces; or
 - (c) in the case of officers and militants of a regular force, is continuous.
- (2) Subsection [\(1\)](#) does not apply to an officer or a militant who is—
 - (a) on leave immediately preceding release; or
 - (b) on leave without pay,except that, any such officer or militant shall not engage in a civil employment or undertaking that reflects or is likely to reflect discredit upon the Defence Forces.

- (3) Without prejudice to the general effect of subsection (1), the Minister may, by regulations made under this Act, specify the types of business that officers and militants shall not engage in.

37. Attachment and secondment

- (1) An officer or a militant shall be attached or seconded to—
- (a) any unit of any military, naval or marine or air force established in East Africa; or
 - (b) any unit of any military, naval or marine or air force of a country which the President, by notice in the *Gazette*, declares to be a country to which this subsection applies.
- (2) Officers and militants of the Defence Forces may be attached or seconded to any department or agency of Government, any public or private institution, private industry or any other body.
- (3) An officer or a militant may be loaned under an agreement between the Minister and the appropriate authority of another country or government, an agency or a civilian body.
- (4) No officer or militant of the reserve forces or of any prescribed force who is not mobilised shall, without his or her consent, be attached, seconded or loaned under this section.
- (5) The manner in which and the conditions on which an officer or a militant may be attached, seconded or loaned under this section shall be prescribed by regulations made under this Act.
- (6) An officer or a militant attached, seconded or loaned under this section shall, for all purposes, continue to be a member of the Defence Forces.

Deployment of troops outside Uganda

38. Deployment of troops outside Uganda

- (1) The President may deploy troops outside Uganda for purposes of—
- (a) peacekeeping; or
 - (b) peace enforcement.
- (2) The deployment of troops for purposes of peacekeeping shall be done with the approval of Parliament.
- (3) Where the President deploys troops under this section when Parliament is on recess, the Speaker shall immediately summon Parliament to an emergency session to sit within twenty-one days after the deployment, for purposes of ratifying that deployment.

39. Agreement relating to deployment of troops outside Uganda

Where troops are to be deployed outside Uganda under a multilateral or bilateral arrangement with other countries, the Minister shall enter into a Status of Forces Agreement with the host country or organisation.

40. Law applicable

- (1) The deployed troops shall not be subject to the law of the host country or the jurisdiction of any court or tribunal deriving power under that law.
- (2) A deployed soldier who commits any offence may be repatriated for trial in Uganda.
- (3) Where the circumstances surrounding the commission of an offence by a person deployed outside Uganda require that the person be tried and punished at the scene of the crime, that person may, with the approval of the appropriate authority, be so tried and punished under the laws of Uganda.

Aid to civil power

41. Aid to civil power

The Defence Forces, any part of the Defence Forces, and any officer or militant, are liable to be called out for service in aid of the civil power in any case in which a riot or disturbance of the peace occurs or is, in the opinion of the appropriate civil authority likely to occur, if in the opinion of the appropriate civil authority the riot or disturbance of the peace is likely to be beyond the powers of the civil authorities to suppress or prevent.

42. Officers and militants have powers of police officer

- (1) The officers and militants called out for service in aid of the civil power under section [41](#) shall, without further authority or appointment, and without taking any oath of office, have and may exercise, in addition to their powers and duties as officers and militants, all the powers and duties of a police officer.
- (2) Where any officer or militant has been called out for service in aid of the civil power, he or she shall act only as a military force and shall individually be liable to obey the orders of his or her superior officer, who shall exercise his or her powers in collaboration with the officer in charge of the civil power.

43. Other assistance to civil authorities

- (1) Subject to subsection [\(3\)](#), the Defence Forces or any part of the Defence Forces may be employed in rendering assistance to the civil authorities required to prevent loss of life or serious loss of or damage to property, or for other purposes when the public interest so requires.
- (2) The service by officers and militants in rendering assistance authorised under subsection [\(1\)](#) shall constitute military duty.
- (3) Unless he or she has been mobilised under section [29](#), no member of the reserve forces shall be required to perform any service in rendering assistance authorised by regulations under this section without his or her consent.

44. General

Nothing in sections [41](#), [42](#) and [43](#) shall be construed as restricting or qualifying the powers and prerogatives relating to the employment of the Defence Forces which are vested in the President and Commander-in-Chief by [the Constitution](#) or otherwise.

Cooperation with, and attachment, etc. of other forces

45. Cooperating forces

The President may, where he or she considers it appropriate, declare, by notice in the *Gazette*, the military, naval or marine or air forces of any other country to be forces acting in cooperation with the Defence Forces or any part of the Defence Forces, and may, if the officer commanding the cooperating forces is senior in rank to all the officers of the part of the Defence Forces concerned, place any part of the Defence Forces under the command of that officer commanding.

46. Attachment, etc. to Defence Forces

- (1) Where the Service authorities having jurisdiction over any force to which this section applies, place any member of that force at the disposal of the Defence Forces, that member may be attached or seconded to the Defence Forces; and where any such member of another force is so seconded or

attached, he or she shall, during the attachment or secondment, be deemed to be a member of the Defence Forces of equivalent rank.

- (2) The forces to which this section applies are the naval or marine, military and air forces of the East African countries and of any other country which the President, by notice in the *Gazette*, declares to be a country to which this section applies.
- (3) The regulations made under this Act may provide that any member of a force to which this section applies who is attached to the Defence Forces and who remains subject to the service law of the first-mentioned force, shall not, except in respect of any matter specified in the regulations, be subject to this Act.

Miscellaneous

47. Procurement

- (1) The procurement for all services shall be conducted by the Chief of Staff of the Defence Forces in liaison with the Ministry.
- (2) The procurements referred to under subsection (1) shall comply with the Public Procurement and Disposal of Public Assets Act and the Public Finance Management Act.

48. Supply and issue of material

The material supplied to or used by the Defence Forces shall be of such type, quality, pattern and design and shall be issued on such scales and in such manner as the Defence Forces Council or such authorities of the Defence Forces as are designated by the Defence Forces Council for that purpose may approve.

49. Commandeering and billeting

- (1) In time of war or at any other time where there exists actual or threatened emergency, the Minister may appoint and authorise officers of the Defence Forces or public service by requisition, to obtain and take possession of buildings and other premises, supplies of foodstuffs, vehicles, aircraft, boats and any other article or thing whether similar to the foregoing or not, necessary for the maintenance in the field, of the Defence Forces and further, to provide for the billeting of the Defence Forces under such terms and conditions as may be prescribed.
- (2) A requisition referred to in subsection (1) may be made on any person in the manner prescribed.
- (3) Every person whose property is requisitioned under this section shall be entitled to fair and adequate compensation.
- (4) Except where there is a state of war or where a state of emergency has been declared under Article 110 or 124 of [the Constitution](#), compensation under this Act shall be prompt and paid prior to the requisition under this section.
- (5) Where there is no state of war and no state of emergency has been declared under [the Constitution](#), any person whose interest in property has been requisitioned and who is aggrieved about the compensation, shall have a right to apply to a court of competent jurisdiction for redress.
- (6) Where there is a state of war or a declared state of emergency, the compensation shall be payable as soon as practicable, subject to any enactment relating to the war or state of emergency.

Part IV – Terms and conditions of service

Recruitment and appointment to commissions

50. Recruitment

- (1) The authority to recruit persons into the Defence Forces is vested in the Defence Forces Council.
- (2) The members of the Defence Forces shall be recruited from every district of Uganda.
- (3) Every person who wishes to be recruited into the Defence Forces shall first get the recommendation of his or her village local council.
- (4) Notwithstanding subsections (2) and (3), the Defence Forces Council may undertake such special recruitment as the interests of the Defence Forces require.

51. Enrolment and appointment to commission

- (1) Persons shall be enrolled into the Defence Forces as officers on appointment to a commission or as militants, in accordance with regulations made under this Act.
- (2) No person shall be enrolled into the Defence Forces unless he or she—
 - (a) is a citizen of Uganda;
 - (b) is of good character;
 - (c) is at least eighteen years of age and has attained such level of education as may be prescribed;
 - (d) is medically fit; and
 - (e) meets such other conditions as the Defence Forces Council may prescribe.
- (3) A person shall be qualified to be appointed to a commission in the Defence Forces if he or she—
 - (a) does not exceed such age and has attained such level of education as may be prescribed;
 - (b) has successfully completed a normal course of instruction at an officer cadet training establishment;
 - (c) has courage and initiative beyond the ordinary;
 - (d) is of exemplary character; and
 - (e) satisfies such other conditions as the Defence Forces Council may prescribe.
- (4) A serving militant who does not have the qualifications referred to in subsection (3)(a) and (b) but has an outstanding record of service and is recommended by his or her commanding officer may be appointed to a commission.
- (5) No person shall be appointed to a commission unless he or she has been recommended by the Commissions Board.
- (6) The limitation on age referred to in subsection (3)(a) shall not apply to a person having professional qualifications.
- (7) Every commission granted under this section shall be signed by the President.
- (8) The President shall effect appointments to a commission in accordance with the Statement of Commission set out in Schedule 4 to this Act.

52. Oaths on enrolment

Every person, on enrolment into the Defence Forces, shall take the Oath of Allegiance and the Oath of Secrecy set out, respectively in Schedules 5 and 6 to this Act.

53. Re-engagement

- (1) The re-engagement of an officer or a militant upon or prior to completion of his or her term of service shall be governed by regulations made under this Act.
- (2) An officer or militant may, with the approval of the Commander-in-Chief, in the case of an officer or the Chief of Defence Forces in the case of a militant, re-engage in a regular force after having been dismissed on grounds other than those in breach of the Defence Forces code of conduct.
- (3) The service of an officer or a militant who re-engages under this section shall be deemed to be continuous service for the purposes of his or her gratuity or pension or both if he or she has not already been paid the gratuity or pension or both in respect of his or her previous service.
- (4) The pension or gratuity of an officer or a militant who re-engages after he or she has received his or her pension or gratuity in respect of his or her previous service shall be in accordance with section [74](#).

Promotion, acting rank, temporary rank and honorary rank

54. Considerations for promotion

- (1) For the promotion of an officer or a militant, the Board shall consider the following—
 - (a) the establishment of the Defence Forces;
 - (b) his or her length of service, and where applicable, age;
 - (c) training or courses or both, attended;
 - (d) appointment;
 - (e) results of such standard promotions examinations, practical and written, to be attended after such periods after successful completion of the requisite courses, as shall be prescribed by the Defence Forces Council;
 - (f) confidential reports by his or her commanding officer or head of department regarding—
 - (i) character;
 - (ii) discipline; and
 - (iii) performance;
 - (g) for professionals and quasi-professionals, qualifications and experience; and
 - (h) such other conditions as the Defence Forces Council may prescribe.
- (2) The promotion of an officer shall be signed by the President or any other person or body authorised by him or her.
- (3) The promotion of a militant shall be signed by the Chief of Defence Forces or by any other person or body authorised by him or her.
- (4) The preparation and submission of the confidential reports referred to in of subsection [\(1\)\(f\)](#) shall be in accordance with such procedure as shall be prescribed in regulations made under this Act.

55. Board to consult

In the performance of its functions, the Board may consult any person it deems necessary but shall not take into consideration any representation made contrary to this Act or regulations under the Act.

56. Board to summon persons

- (1) The Board may require any person to attend and give evidence before it on any matter before the Board and may require the production of any document relating to the subject which is in the custody of the person.
- (2) A person, other than a person summoned in connection with his or her recommendation for appointment to a commission, who—
 - (a) without reasonable cause fails to appear before the Board when requested to do so; or
 - (b) wilfully fails to produce a document under his or her custody which is required by the Board, commits an offence and is liable, on conviction, to a fine not exceeding one month's pay.

57. Allowance for attending meeting of Board

A person attending a meeting of the Board on request by the Board, other than a person attending in connection with his or her recommendation for appointment to a commission, shall be paid such allowance as may be prescribed.

58. False information to Board

A person who knowingly and wilfully gives the Board any false information commits an offence and is liable, on conviction, to a fine not exceeding one month's pay or a term of detention not exceeding one month, or both.

59. Unauthorised disclosure

- (1) No person shall, in any proceedings or communication not being any lawful communication within the Defence Forces, produce or disclose—
 - (a) any report, statement or other commission—
 - (i) written by the Board in the performance of its functions; or
 - (ii) written by himself or herself in the performance of his or her functions; or
 - (b) any document addressed to the Board,unless the Chief of Defence Forces certifies that the production or disclosure is not against the public interest or will not jeopardise the defence of Uganda.
- (2) No person shall publish or disclose to another person, other than in the performance of his or her lawful functions, the contents of any document or other communication which has come to his or her knowledge in the course of his or her official duties.
- (3) Any person who contravenes this section commits an offence and is liable, on conviction, to a fine not exceeding two months' pay or a term of detention not exceeding four months, or both.

60. Demotion

No officer or militant shall be demoted below his or her substantive rank except by sentence of a military court of competent jurisdiction or, in the case of a militant, by reason of reversion or re-mustering.

61. Reward for distinguished service

The President may reward any member of the Defence Forces for distinguished or gallant conduct on active service in such manner as may be prescribed.

62. Acting rank and temporary rank

- (1) The Chief of Defence Forces may, after consulting the Commander-in-Chief, grant an acting rank or a temporary rank to a senior officer of the Defence Forces.
- (2) The Chief of Defence Forces may grant an acting rank or a temporary rank to a junior officer of the Defence Forces and shall notify the Commander-in-Chief of the grant of that rank.
- (3) An acting rank may be granted at the discretion of a commanding officer to a militant who has acted for not less than such number of days as may be prescribed, in a vacancy in the establishment which carries a higher rank than his or her substantive rank.
- (4) The grant of an acting rank or a temporary rank will entitle the holder to the pay of that rank with effect from the day when the rank was granted or the militant started acting in the vacancy.
- (5) An acting rank granted to a militant will be relinquished on the date the holder ceases to act in the appointment for which the rank was granted.
- (6) On the lapse of the purpose or the period for which the acting rank or temporary rank was granted, an officer shall revert to his or her substantive rank unless he or she has been confirmed in the acting rank or temporary rank by the President.

63. Honorary rank

- (1) The President may, on the recommendation of the Chief of Defence Forces, grant an honorary rank to a person—
 - (a) who has rendered distinguished service to the Defence Forces; or
 - (b) to enable him or her to hold or to facilitate him or her to effectively hold and exercise an appointment in the Defence Forces.
- (2) The grant of an honorary rank under subsection (1) shall not, of itself—
 - (a) cause a person to become a member of the Defence Forces;
 - (b) confer any right of command; or
 - (c) unless the President on the recommendation of the Chief of Defence Forces otherwise directs, involve any expense to the public.

Release and suspension

64. Dismissal

- (1) No officer or militant shall be dismissed from the Defence Forces except by sentence of a military court or by reason of the provisions of section [2\(4\)\(b\)](#).
- (2) Notwithstanding subsection (1), the Chief of Defence Forces may dismiss from the Defence Forces, with or without disgrace, an officer or militant who—
 - (a) is found guilty of any offence by a civil court; other than a traffic offence; or
 - (b) has been sentenced by a court martial to a term of imprisonment to which section [219\(4\)\(b\)](#) does not apply and he or she has been advised by the Board that in the interest of the discipline of the Defence Forces, the officer or militant should accordingly be dismissed.

65. Resignation of commission

- (1) An officer may in writing tender the resignation of his or her commission to the Board but shall not, unless otherwise ordered by the Chief of Defence Forces, be relieved of the duties of his or her appointment until he or she has received notification, in writing, of the approval of his or her resignation by the Board.
- (2) The Board shall notify an officer of its decision on his or her application to resign his or her commission within ninety days after receipt of his or her application, and the approval of an application to resign the commission shall not be unreasonably withheld.
- (3) An officer who resigns his or her commission under subsection (1) and resigns from his or her employment in the Defence Forces under any regulations, shall not be exempt from any service in the reserve to which he or she may be liable under this Act.

66. Discharge

The Defence Forces Council may discharge an officer or a militant from the Defence Forces at any time during the currency of any term of engagement—

- (a) if, within two years from the date of enrolment, his or her commanding officer considers that he or she is unlikely to be an efficient soldier;
- (b) for activities or behaviour likely to be prejudicial to the maintenance of public safety or public order or the discipline of the Defence Forces;
- (c) when convicted by a civil court of any offence;
- (d) when pronounced by a medical officer to be physically or mentally unfit for further service;
- (e) on reduction of establishment;
- (f) for any faults within or outside the control of the officer or militant;
- (g) if for any justifiable reason his or her services are no longer required; or
- (h) in the interest of the Defence Forces.

67. Entitlement to release and exceptions

- (1) Subject to this section, and except during an emergency or when he or she is on active service, or as otherwise provided under this Act, an officer or a militant shall be entitled to be released at the expiration of the term of service for which he or she is enrolled.
- (2) Except as may be provided in regulations, all periods during which an officer or a militant has been absent from his or her duty by reason of—
 - (a) imprisonment;
 - (b) desertion; or
 - (c) absence without leave,shall not be reckoned towards the completion of the term of service for which that officer or militant is enrolled.
- (3) Where the term of service for which an officer or a militant is enrolled expires during an emergency or when he or she is on active service, he or she is liable to serve until the expiration of six months after the emergency has ceased to exist or after he or she has ceased to be on active service, as the case may be.

- (4) An officer or a militant shall not be entitled to be released at a time when, as a result of having committed or being suspected of having committed an offence under this Act, proceedings against him or her under this Act are or are likely to be taken.
- (5) An officer or a militant undergoing a sentence of imprisonment or detention shall not be entitled to be released while serving the sentence.

68. Suspension

The Chief of Defence Forces or any other person authorised by him or her may suspend an officer or a militant pending the result of any inquiry into or any trial by a military court or civil court for any offence alleged to have been committed by him or her, or if the interests of the Defence Forces so require.

Financial and other matters

69. Pay and allowances

- (1) Subject to the provisions of subsection (3), the allowances of officers and militants shall be such and shall be issued under such conditions as are prescribed in regulations made under this Act.
- (2) The salaries and allowances of officers and militants are subject to such forfeitures and deductions as may be prescribed in regulations made under this Act.
- (3) The rates of salaries of officers and militants, and of allowances for them which exist in the public service, shall, unless circumstances unique to the Defence Forces require otherwise, be the same as those of their equivalents in the public service.

70. Service pensions and gratuities

- (1) An officer or a militant who is released from the Defence Forces, shall be entitled to pension or gratuity, in accordance with regulations made under this Act.
- (2) The constant to be applied in the computation of pensions under this Act shall not be less than that applied in the computation of pensions for public officers.
- (3) The formula to be used in the computation of pensions and gratuities, under this Act shall be that applied in the computation of pensions and gratuities for public officers.
- (4) Where a person who is in receipt of a pension under this Act dies before the expiry of fifteen years or of such other period as may be provided, in the case of public officers, after the date of his or her release, the pension shall continue as in the case of a public officer in receipt of a pension who dies before the expiry of that period.
- (5) For the purpose of computing the amount of pension or gratuity to be granted to an officer or a militant under this Act, the full annual pensionable emoluments enjoyed by him or her immediately prior to the date of his or her release shall be taken.
- (6) There shall be paid on every pension payable in respect of service in any Defence Forces of Uganda an appropriate increase computed in accordance with the formula governing such increase on every pension payable in respect of service in the public service.

71. Maximum pension

- (1) A pension granted to an officer or a militant under this Act shall not exceed such percentage of the highest pensionable emoluments drawn by him or her in his or her service as is provided in the case of a pension granted to a public officer who does not have other public service.
- (2) For the purposes of this section, an additional pension granted in respect of injury, a wound or disease shall not be taken into account.

72. Gratuity and reduced pension

An officer or a militant to whom a pension is granted under this Act shall be paid a pension at the rate of such fraction of such pension together with a gratuity equal to such number of times the amount of the reduction so made in the pension as is provided in the case of a public officer to whom a pension is granted.

73. Reduction of establishment

- (1) If an officer or a militant is retired or discharged from the service in reduction of the establishment after having completed such number of years' reckonable service as may be prescribed, he or she may be granted a pension *in lieu* of any gratuity to which he or she maybe entitled under this Act in respect of his or her reckonable service.
- (2) An officer or a militant to whom a pension is granted under this section shall receive, in addition to the pension, such percentage of the pension granted as may be prescribed, as additional benefit.

74. Grant of pension, etc. on dismissal

Where an officer or a militant is dismissed from the Defence Forces without disgrace, the pensions authority may, if it thinks fit, grant to him or her such pension or gratuity as it thinks just and proper, not exceeding in amount that for which the officer or militant would be eligible if he or she had not been dismissed.

75. Additional service

- (1) If an officer or a militant receiving a pension under this Act re-engages, his or her pension shall cease and any period of additional service shall count as reckonable service for the purpose of assessing his or her final pension on his or her final retirement or discharge; except that the rate of pension payable on the final retirement or discharge of the officer or militant shall not be less than any pension payable prior to his or her re-engagement.
- (2) Where an officer or a militant who on release was not qualified for pension re-engages after receipt of his or her gratuity, the pensions authority may, on his or her subsequent release, if the aggregate of his or her service would qualify him or her for pension, grant him or her a pension if the officer or militant refunds the gratuity he or she received in such manner as may be agreed between him or her and the Chief of Defence Forces.
- (3) Where the officer or militant referred to in subsection (2) does not refund the gratuity and the period of his or her re-engagement alone does not qualify him or her for pension, the pensions authority shall grant him or her a further gratuity in accordance with section 70.

76. Emergency or recall

- (1) Where an officer or a militant is recalled for service on full pay during a period of general recall on account of an emergency or in anticipation of a general recall, that officer or militant shall, during such further service, continue to receive his or her service pension at half the rate payable on the day before that on which the further service begins.
- (2) On retirement or discharge, an officer or a militant who has been recalled under subsection (1) and who was not qualified for pension, on satisfactory completion of his or her period of engagement, shall be entitled to a lump sum payment of twenty-five percent of his or her total emoluments for the period of the further service.

77. Death and disability pensions and gratuities

- (1) Where an officer or a militant dies in service, the pensions authority may grant to his or her legal personal representative such gratuities or such gratuity and reduced pension, as the case may be, as

is paid to the legal personal representative of a public officer who dies while holding a pensionable office, as if references in section 16 of the Pensions Act to periods of service were references to the qualifying period for pension for an officer or a militant prescribed in regulations made under this Act.

- (2) Where an officer or a militant suffers disablement as a result of a wound, injury or disease due to or hastened or aggravated by his or her service, the pensions authority shall grant to him or her such pension or gratuity as may be provided in regulations made under this Act.
- (3) Where, as a result of a wound, injury or disease which was due to, or hastened by or aggravated by his or her service an officer or a militant, retired officer or discharged militant dies within seven years after the date of the wound, injury or the contracting of the disease, the pensions authority may grant to his or her dependants, in addition to the grant, if any, made to his or her legal personal representative under subsection (1), a pension in accordance with the formula applied for the grant of pensions to dependants of public officers dying from injuries received or disease contracted on duty.
- (4) For the avoidance of doubt, this section applies in the case of an officer or a militant who re-engages under section 53 or who is recalled under section 76.

78. Entitlement on disablement or death

- (1) The disablement or death of an officer or a militant, retired officer or discharged militant shall be accepted as due to service for the purposes of section 77(2) and (3)—
 - (a) if the disablement is due to a wound, injury or disease which—
 - (i) is attributable to service; or
 - (ii) existed before or arose during service and has been and remains aggravated by such service; or
 - (b) if the death was due to or hastened by—
 - (i) a wound, injury or disease which was attributable to service; or
 - (ii) the aggravation by service of a wound, injury or disease which existed before or arose during service.
- (2) In no case shall the burden of proof under subsection (1) lie upon the officer or militant, retired officer or discharged militant or other person claiming under this Act, and, in every case, the benefit of the doubt shall be given to such an officer or militant, retired officer or discharged militant or other person.
- (3) Where a wound, injury or disease which has led to an officer's retirement or a militant's discharge or death during service was not recorded in any medical report made on the officer or militant on the commencement of his or her service, the wound, injury or disease shall be accepted as being due to service unless the evidence shows that the conditions set out in subsection (1) are not fulfilled.
- (4) Where, after expiration of the period of seven years beginning with the termination of a retired officer's or discharged militant's service, a claim is made in respect of his or her disablement or death, being a death occurring after the expiration of that period, the disablement or death shall be accepted as due to service—
 - (a) if, in the case of disablement, the pensions authority is satisfied that the conditions set out in subsection (1) are applicable and fulfilled; and
 - (b) if, in the case of death, the retired officer or discharged militant was at the time of his or her death, or at any time before his or her death, had been in receipt of a pension granted by the pensions authority in respect of the wound, injury or disease which was the cause of, or substantially hastened, his or her death, and the pensions authority is satisfied that the conditions set out in subsection (1) are applicable and fulfilled.

- (5) Where, on reliable evidence, a reasonable doubt exists whether in respect of a claim under subsection (4) the conditions set out in subsection (1) are fulfilled, the benefit of that reasonable doubt shall be given to the claimant, and where there is no record in contemporary official records of a material fact on which the claim is based, other reliable corroborative evidence of that fact may be accepted.
- (6) Where an officer or militant suffers physical, sensory or mental impairment as a result of his or her service, he or she shall, in addition to medical treatment, be entitled to rehabilitation services.
- (7) For the purposes of subsection (6), rehabilitation services shall include counselling, provision of assisting devices such as hearing aids, mobility appliances, white cane, sign language training, vocational skills and mobility skills.
- (8) An officer or militant who has undergone rehabilitation may, where applicable, be eligible for redeployment in a suitable vacancy in the Defence Forces.

79. Payment of pension

Every pension payable under this Act shall be paid monthly in arrears to the officer or militant to whom it is granted.

80. Pensions and gratuities charged on Consolidated Fund

All pensions and gratuities payable under sections [70](#), [71](#), [72](#), [73](#), [74](#), [75](#), [76](#), [77](#), [78](#) and [79](#) shall be charged on the Consolidated Fund.

81. Payment of pensions, etc. in respect of veterans

- (1) Subject to this Act, pension and gratuity shall be paid in respect of the death of a veteran.
- (2) The pension and gratuity in respect of a veteran shall—
 - (a) be paid in the manner and shall be at the rates that apply to like payments under this Act;
 - (b) be current rate of pay applicable to the rank of the deceased; and
 - (c) be paid to such dependants of the deceased as would qualify for payment in respect of an officer or militant who dies in service.
- (3) In this section, unless the context otherwise requires— “veteran” means a person who—
 - (a) was a member of the armed wing of a liberation organisation;
 - (b) as a member of that wing actively participated in the liberation struggle; and
 - (c) died as a result of such participation in the liberation struggle;“liberation organisation” means any of the following organisations—
 - (a) National Resistance Movement (NRM);
 - (b) Uganda National Rescue Front (UNRF);
 - (c) Uganda Freedom Movement (UFM);
 - (d) Former Uganda National Army (FUNA);
 - (e) Save Uganda Movement (SUM);
 - (f) Federal Democratic Movement (FEDEMO);
 - (g) Front for National Salvation (FRONASA);

(h) Uganda National Liberation Front/Anti Dictatorship (UNLF/Anti Dictatorship Rwenzori Front);

(i) Kikosi Malum;

“liberation struggle” means the struggle against the regimes of dictatorship in power during the period between 1971 and the 26th day of January, 1986.

- (4) Anything done or made in good faith before the commencement of this Act in relation to pensions or gratuities in respect of veterans, which could have been done or made under this Act, shall be deemed to have been done or made under this Act.

82. Income tax

Notwithstanding any provision in any written law to the contrary, no income tax shall be charged upon any pension or gratuity granted under this Act.

83. Bankruptcy

Where an officer or a militant to whom a pension or gratuity has been granted under this Act is adjudged bankrupt by any competent court, that officer or militant shall continue to receive the pension or gratuity but the pension or gratuity shall not be subject to attachment under [the Insolvency Act](#).

84. Imprisonment

The payment of a pension granted under this Act shall not be affected by a sentence of imprisonment imposed by a civil court upon the officer or militant to whom it was granted for any offence.

85. Assignability of pension

No pension or gratuity payable under or by virtue of this Act shall be assignable or transferable or liable to be attached, sequestered or levied upon for or in respect of any debt or claim except for the purpose of satisfying—

- (a) a debt due to the Government; or
- (b) an order of any court for the payment of periodical sums of money towards the maintenance of the spouse or former spouse, or minor child, of the person to whom the pension or gratuity has been granted.

86. Seconded personnel

An officer or a militant who is seconded outside the Defence Forces shall not, during the period of the secondment, be entitled to any pay or allowances from the Defence Forces other than facilitation for assigned military duties.

87. Parliamentary representatives

- (1) An officer or a militant who is a representative of the Defence Forces in Parliament shall elect whether to receive his or her pay and allowances from the Defence Forces or from Parliament.
- (2) An officer or a militant who elects to receive his or her pay and allowances from Parliament shall, with effect from the date of such election, cease to receive any pay or allowances from the Defence Forces other than facilitation for assigned military duties.

88. Soldiers on remand, detention, bail, etc.

An officer or a militant who—

- (a) has been remanded by a civil or military court;
- (b) is in detention otherwise than by reason of a sentence of a court; or
- (c) is on bail,

shall be entitled to one-half of his or her basic pay until the disposal of his or her case and shall, on acquittal, discharge by court or release, recover the balance of his or her basic pay.

89. Appeals from decisions of pensions authority

Section 19 of the Pensions Act shall, with the necessary modifications, apply to appeals from decisions of the pensions authority under this Act as it applies to the decisions of the pensions authority in respect of public officers under that Act.

General

90. Service of professionals

Where an officer or a militant who has professional or quasi professional qualifications and who has been serving in the Defence Forces in a professional or quasi-professional capacity in the field of his or her qualifications, subsequently seeks employment in any other Ministry or department of the Government, his or her service in the Defence Forces shall count towards his or her seniority in the profession and qualification for an appointment or promotion in that Ministry or department.

91. Bonds

- (1) An officer or a militant who receives military training or formal education at the expense of the Government of Uganda shall be required to serve in the Defence Forces for such period for each year of training or education as shall be prescribed by the Defence Forces Council.
- (2) Notwithstanding subsection (1), an officer or a militant may retire from the Defence Forces in accordance with this Act or regulations made under this Act prior to the expiry of the period of the bond if he or she refunds to the Government the cost of his or her training or education.

92. Leave

- (1) An officer or a militant shall be entitled to annual leave at such rates as shall be prescribed.
- (2) Annual leave may be withheld only by reason of the exigencies of service.
- (3) An officer or a militant proceeding on annual leave shall be entitled to such class of transport for himself or herself and his or her spouse and children as shall be prescribed.
- (4) An officer or a militant shall be paid cash *in lieu* of annual leave not taken by him or her.
- (5) A female officer or militant shall, in addition to annual leave, be entitled to maternity leave of sixty days with pay, which leave shall count towards her reckonable service.
- (6) On returning to duty after the maternity leave, a female officer or militant shall be entitled to work only half day for a period of not less than six months.
- (7) An officer or a militant may be granted—
 - (a) sick leave;

- (b) compassionate leave;
- (c) special leave;
- (d) additional leave for travelling time;
- (e) leave without pay and allowances; or
- (f) pass of such length, by such authority and on such conditions,
as shall be prescribed.

(8) An officer or a militant on leave may be recalled to duty at any time.

93. Medical and other services

- (1) An officer or a militant and his or her spouse and children shall be entitled to medical care and dental services at public expense in accordance with regulations made under this Act.
- (2) The regulations made under this Act may limit the number of spouses and children the Defence Forces will be obliged to cater for in terms of medical care and dental services or any other service.

94. Accommodation

Accommodation for officers and militants shall be as prescribed by the Defence Forces Council.

95. Transport

Transport for official duties shall be availed to entitled officers or militants in accordance with regulations made under this Act.

96. Marriage

- (1) An officer or a militant who is not a professional as categorised in the regulations to this Act, shall be entitled to the facilities and benefits of a married officer or militant only after serving in the Defence Forces for not less than four years.
- (2) The facilities and benefits referred to in subsection (1) shall only be provided to an officer or a militant whose marriage was contracted in accordance with the forms of marriage recognised by the laws of Uganda and who produces legally acceptable evidence in proof of the marriage.

97. Political office

A serving officer or militant who desires to seek political office shall first resign or retire from the Defence Forces according to regulations made by the Minister.

98. Administration of oaths

An officer of the Defence Forces who is an advocate qualified for appointment as a Commissioner for Oaths may, in respect of a person subject to military law, administer any oath or take any affidavit or statutory declaration which could be administered or taken by a Notary Public and a Commissioner for Oaths in Uganda, and every oath, affidavit or statutory declaration sworn or done by or before any such officer shall be as effectual as if duly administered, sworn or done by or before any person lawfully entitled to practise as a Notary Public or Commissioner for Oaths in Uganda.

99. Redress of wrongs

Every officer and militant shall have the right to seek redress for any wrong in accordance with regulations made under this Act.

100. Other provisions

The following shall be as prescribed in regulations made under this Act—

- (a) the procedure of enrolment;
- (b) the terms of enrolment in respect of colour service and service in the reserve;
- (c) types of commissions and the ranks on appointment to a commission;
- (d) the procedure for application for a commission;
- (e) the procedure regarding appointment to a commission;
- (f) the trades for militants, their groups and classification, and the ranks and appointments for militants graded in accordance with the trades;
- (g) the service brackets for the promotion of officers and the applicable conditions to them;
- (h) the ranking and promotion criteria for members of the Defence Forces holding professional or quasi-professional qualifications;
- (i) the maximum ages of retirement for officers in the service ranks;
- (j) the certificate of service to be issued on the release of an officer or a militant;
- (k) the dates of commencement and cessation of pay;
- (l) transfer to the reserve;
- (m) increment of pay;
- (n) reversion and re-mustering; and
- (o) the procedure for redress of wrongs.

Appointment of civilians**101. Appointment of civilian employees**

A civilian employee may be appointed to work in the Defence Forces where—

- (a) the Defence Forces do not have appropriately qualified or adequately experienced military personnel to fill a vacancy in the establishment; or
- (b) due to under establishment or any other reason, the Defence Forces do not have the human resource to provide certain services required by the Defence Forces.

102. Number of civilian employees

- (1) The number of civilian employees to be appointed to work in the Defence Forces shall be determined by the Chief of Defence Forces on the following considerations—
 - (a) the availability of a vacancy in the establishment of the Defence Forces and the need to fill the vacancy;
 - (b) the availability of funds for the remuneration and other entitlements of the civilian to be appointed; and
 - (c) such other considerations as the Defence Forces Council may prescribe.
- (2) The Chief of Defence Forces shall, before exercising his or her powers under subsection (1), consult the Permanent Secretary.

103. Preliminaries to appointment

- (1) The responsible head of a department of the Defence Forces who desires a vacancy in the establishment of his or her department to be filled by the appointment of a civilian employee, shall make a request in writing in that regard to the Service Chief of Personnel and Administration indicating—
 - (a) the details of the vacancy;
 - (b) the qualifications and duties attached to the vacancy;
 - (c) the reasons why it is necessary to fill the vacancy by the appointment of a civilian employee; and
 - (d) such other details as the Defence Forces Council may prescribe.
- (2) The Service Chief of Personnel and Administration shall, if satisfied of the need to fill the vacancy by the appointment of a civilian employee, forward the request of the head of department to the Chief of Defence Forces through the Service Commander and he or she shall—
 - (a) forward a draft advertisement for the vacancy with the request; and
 - (b) indicate the availability and source of funds to cater for the remuneration and other benefits of the civilian to be appointed.
- (3) The Chief of Defence Forces shall, if satisfied with the considerations in section [101](#) and section [102\(1\)](#) and after consulting the Permanent Secretary, forward the draft advertisement accompanying the request to the secretariat of the military contracts committee of the Ministry, for publication.
- (4) Candidates for the vacancy shall be interviewed by a committee composed of the following officers of the relevant service—
 - (a) the Service Chief of Personnel and Administration who shall be the chairperson, or his or her representative;
 - (b) the Chief Political Commissar or his or her representative;
 - (c) the Chief of Legal Services or his or her representative; and
 - (d) the head of department who made the request for filling the vacancy by the appointment of a civilian employee.
- (5) In the absence of the Service Chief of Personnel and Administration, the most senior member of the interviewing committee present shall be the chairperson.
- (6) The interviewing committee shall regulate its own procedure and the chairperson of the committee may co-opt any person to render technical advice to the committee.

104. Manner of appointment

- (1) The civilian employees to work in the Defence Forces may be appointed by contract or by letter of appointment.
- (2) Where a civilian employee is appointed by contract, the terms of the contract of appointment shall be approved by the Permanent Secretary who shall be the signatory to such contracts on behalf of the Government of Uganda.
- (3) Notwithstanding subsections [\(1\)](#) and [\(2\)](#), where any regulations under this Act provide that an employee for the purposes of those regulations shall be appointed by some other authority and in some other manner, the employee shall be appointed in accordance with the provisions of those regulations.

105. Length of appointment

- (1) A civilian employee to work in the Defence Forces shall be appointed for a period of not more than two years, subject to renewal.
- (2) The appointment of a civilian employee shall not be renewed if—
 - (a) during the period of the appointment, the Defence Forces have obtained a militant who can fill the vacancy;
 - (b) shortly after the expected date of expiry of the appointment, the Defence Forces expect to obtain a militant to fill the vacancy;
 - (c) the employee elects to join the Defence Forces; or
 - (d) the services of the employee are no longer required.
- (3) At any time, not being less than three months before the date on which his or her period of appointment terminates, the employee shall, through his or her head of department or the Service Chief of Personnel and Administration or both who shall make their recommendations in that regard, give notice in writing to the Chief of Defence Forces whether he or she desires to renew his or her appointment.
- (4) If the employee desires to renew his or her appointment, the Chief of Defence Forces shall decide whether he or she will be re-appointed; in which case the Chief of Defence Forces shall accordingly advise the Permanent Secretary.

106. Place of service

A civilian employee shall serve in any place where the services of his or her appointment may be required.

107. Standard of work

A civilian employee shall—

- (a) perform the duties of his or her appointment with reasonable skill, care and diligence and in accordance with any recognised standards applicable to his or her profession and appointment and the duties of that profession and appointment;
- (b) devote all his or her energies to his or her duties;
- (c) at all times safeguard the interests of the Defence Forces;
- (d) exercise due care when handling property entrusted to him or her by the Defence Forces;
- (e) as required by the nature of his or her employment, be available to perform his or her duties; and
- (f) not engage in any business or activity likely to interfere or conflict with the performance of his or her duties.

108. Secrecy

A civilian employee shall not, at any time during his or her appointment or after the termination of his or her appointment, divulge to any person, except with the express permission of the competent authority of the Defence Forces, any information relating to or which came into his or her possession in the course of his or her duties.

109. Delivery of documents

A civilian employee shall, upon the termination of his or her appointment, deliver to the competent authority of the Defence Forces, all correspondence, documents and any property belonging to the Government which may be in his or her possession or under his or her control.

110. Conditions of service of civilian professionals and quasi-professionals

A civilian employee appointed to work in the Defence Forces in a professional or quasi-professional capacity shall—

- (a) draw such allowances as he or she may be entitled to by reason of his or her appointment or the nature of his or her work in the Defence Forces;
- (b) be equated, where applicable, to an officer or a militant of the Defence Forces of the same qualifications for the purposes of the following benefits—
 - (i) salary;
 - (ii) leave;
 - (iii) travel allowance;
 - (iv) accommodation;
 - (v) transport on official duties; and
 - (vi) medical care; and
- (c) at the successful conclusion of each period of appointment, be entitled to a gratuity of such a percentage of the aggregate basic salary paid to him or her during the period as shall be prescribed.

111. Conditions of service of other civilian employees

Subject to this Act, the conditions of service for support staff who are not appointed to work in the Defence Forces in a professional or quasi professional capacity shall, as far as circumstances permit, be the same as those for support staff in the Public Service.

112. Appointment not pensionable

The appointment of support staff to work in the Defence Forces shall not be pensionable.

113. Other conditions of service

Notwithstanding sections [105\(1\)](#), [110](#) and [111](#), a civilian employee may, due to the nature of the appointment or any other valid reason, be appointed to work in the Defence Forces on conditions of service other than the ones specified in this Act.

114. End of appointment

The appointment of a civilian employee in the Defence Forces shall cease—

- (a) where the employee was appointed by contract, on termination of the appointment in accordance with the terms of the contract;
- (b) on the period of appointment specified in the contract or letter of appointment coming to an end without re-appointment; or
- (c) in any other case, on the Ministry or the employee giving notice of thirty days.

115. Bonding of civilians

Section 91 and any regulations made under this Act shall apply to a civilian appointed to work in the Defence Forces who receives education at the expense of the Government.

Part V – Persons subject to military law**116. Code of conduct for Defence Forces**

There shall be a code of conduct for the purpose of guiding and disciplining members of the Defence Forces as set out in Schedule 7 to this Act.

117. Persons subject to military law

- (1) The following persons shall be subject to military law—
- (a) every officer and militant of a regular force;
 - (b) every officer and militant of the reserve forces and any prescribed force when he or she is—
 - (i) undergoing drill or training whether in uniform or not;
 - (ii) in uniform;
 - (iii) on duty;
 - (iv) on continuing full time military service;
 - (v) on active service;
 - (vi) in or on any vessel, vehicle or aircraft of the Defence Forces or any defence establishment or work for defence;
 - (vii) serving with any unit of a regular force; or
 - (viii) present, whether in uniform or not, at any drill or training of a unit of the Defence Forces;
 - (c) subject to such exceptions, adaptations and modifications as the Defence Forces Council may by regulations prescribe, a person who under any arrangement is attached or seconded as an officer or a militant to any service or force of the Defence Forces;
 - (d) every person, not otherwise subject to military law, who is serving in the position of an officer or a militant of any force raised and maintained outside Uganda and commanded by an officer of the Defence Forces;
 - (e) every person, not otherwise subject to military law, who voluntarily accompanies any unit or other element of the Defence Forces which is on service in any place;
 - (f) every person, not otherwise subject to military law, while serving with the Defence Forces under an engagement by which he or she has agreed to be subject to military law;
 - (g) every person, not otherwise subject to military law, who aids or abets a person subject to military law in the commission of a service offence; and
 - (h) every person found in unlawful possession of—
 - (i) arms, ammunition or equipment ordinarily being the monopoly of the Defence Forces; or
 - (ii) other classified stores as may be prescribed.

- (2) A person mentioned in subsection (1)(e) who, while accompanying a unit or other element of the Defence Forces, is alleged to have committed a service offence shall, for the purposes of this Act be treated as if he or she were a militant of the rank of private unless he or she holds from the commanding officer of the unit or other element of the Defence Forces that he or she so accompanies, or from any other officer prescribed by regulations, a certificate revocable at the pleasure of the officer who issued the certificate or of any other officer of equal or higher rank, entitling that person to be treated as an officer of a particular rank.
- (3) A person who holds such a certificate shall be treated as an officer of that rank in respect of any offence alleged to have been committed by him or her while holding that certificate.
- (4) Every person subject to military law by virtue of subsection (1)(d), (e) and (f), shall, for the purposes of preparation, practice or execution of any plan, arrangement or manoeuvre for the defence or evacuation of any area in case of an attack, be under the command of the commanding officer of the unit or other element of the Defence Forces which he or she is accompanying, or with which he or she is serving.
- (5) The commanding officer shall, for the purposes referred to in subsection (4) be deemed to be a superior officer of that person; but nothing in this section shall be construed as requiring any such person to bear arms or to participate in any active operations against the enemy.
- (6) Every person mentioned in subsection (1)(f) who, while serving with a unit or other element of the Defence Forces under an engagement, is alleged to have committed a service offence shall, for the purposes of this Act be treated as a militant of the rank of private unless by the terms of his or her engagement he or she is entitled to be treated as if he or she were an officer or a militant of higher rank, in which case he or she shall be treated in accordance with the rank prescribed in his or her engagement.
- (7) For the purposes of this Act, the "commanding officer" in relation to any person mentioned in subsection (2), (3), (4) or (5) means the commanding officer of the unit or other element of the Defence Forces that that person accompanies, or in whose custody he or she is, or in which that person is serving, as the case may be.
- (8) Every person who commits a service offence while subject to military law may be liable to be charged, dealt with and tried for that offence notwithstanding that he or she has ceased to be subject to military law since the commission of the offence.
- (9) Every person who, since he or she committed a service offence has ceased to be subject to military law shall, for the purposes of trial, be considered to have the status and rank which he or she held immediately before he or she ceased to be subject to military law.
- (10) Subject to subsections (11) and (12), a person who commits a service offence may only be tried within the Service in which he or she was commissioned or enrolled.
- (11) A person who is attached or seconded to a Service other than the Service in which he or she was commissioned or enrolled, or embarked on a vessel or aircraft of a Service other than the Service in which he or she was commissioned or enrolled, may be tried either within that other Service or within the Service in which he or she was commissioned or enrolled depending on the circumstances and nature of the offence.
- (12) A person serving in the circumstances specified in subsection (1)(d) who, while so serving commits a service offence, may be tried within the Service or force in which his or her commanding officer is serving.
- (13) For the purposes of this section, but subject to such limitations as may be prescribed, a person accompanies a unit of the Defence Forces which is on service if he or she—
 - (a) participates with that unit in the carrying out of any of its movements, manoeuvres, duties in a disaster or warlike operations;

- (b) is accommodated or provided with rations at his or her own expense or otherwise by a unit of the Defence Forces in any place designated by the President;
- (c) is embarked on a vessel or aircraft of a unit of the Defence Forces; or
- (d) is a dependant staying with an officer or a militant serving beyond Uganda with that unit.

Part VI – Offences

Operational offences and offences relating to security

118. Cowardice in action

- (1) A person subject to military law who displays cowardice in action commits an offence and is on conviction, where it results in failure of operation or loss of life, liable to suffer death or, in any other case, liable to life imprisonment.
- (2) For the purposes of this section, “cowardice” in action means—
 - (a) running away or inciting others to run away from the enemy;
 - (b) going over to the enemy;
 - (c) improperly delaying or discouraging any action against the enemy;
 - (d) failing to use utmost exertion to carry out an operation when ordered to do so;
 - (e) failing to capture or destroy war materials from a routed enemy;
 - (f) improperly abandoning or delivering up a defence establishment, garrison, place, material, post or guard;
 - (g) talking or behaving in a manner that is likely to instil fear in other soldiers;
 - (h) premature unauthorised firing;
 - (i) assisting the enemy with material;
 - (j) improper casting away or abandoning of any material in the presence of the enemy;
 - (k) improperly doing or omitting to do anything which results in the capture or destruction of material by the enemy;
 - (l) leaving posts before being regularly relieved when on watch in the presence or vicinity of the enemy; or
 - (m) doing or omitting to do anything with intent to imperil the success of the Defence Forces.

119. Breaching concealment

- (1) A person subject to military law who breaches concealment in operation, commits an offence and is on conviction, where it results in loss of life, liable to suffer death or, in any other case, liable to life imprisonment.
- (2) For the purposes of this section, “breach of concealment in operation” means—
 - (a) unauthorised making of any noise;
 - (b) unauthorised talking;
 - (c) unauthorised walking;
 - (d) unauthorised smoking, lighting or any other form of exposure;

- (e) unauthorised contact with other people;
- (f) premature or unauthorised shooting;
- (g) premature or unauthorised withdrawal;
- (h) negligently choosing bad ground for concealment;
- (i) giving premature orders that can endanger concealment; or
- (j) any other act or omission that may result in breach of concealment.

120. Failure to protect war materials, etc.

- (1) A person subject to military law who fails to protect war materials, misuses or sells them, commits an offence and is liable, on conviction, to suffer death.
- (2) For the purposes of this section, "failure to protect war materials or misuse of them" means—
 - (a) failing to guard arms or ammunition;
 - (b) malicious damage to arms or ammunition;
 - (c) tampering with or mishandling of arms or ammunition resulting in damage;
 - (d) giving or allowing arms or ammunition to be handled by unauthorised persons;
 - (e) losing arms or ammunition or parts of them;
 - (f) failing to clean arms;
 - (g) improper disposal of arms or ammunition;
 - (h) illegal possession of arms or ammunition; or
 - (i) failing to do any other act necessary for the protection of any war material or otherwise misusing the war material.
- (3) A person in command of any vessel, aircraft, defence establishment or unit of the Defence Forces who does not supervise the war materials under his or her command commits an offence and is liable, on conviction, to imprisonment for a term not exceeding fourteen years.

121. Failure to brief, etc.

- (1) A person subject to military law who—
 - (a) is charged with the responsibility of briefing for an operation and fails to do so;
 - (b) fails to obey instructions as explained or laid down regarding briefing for an operation; or
 - (c) fails to prepare for an operation,commits an offence and is, on conviction, where there is failure of operation or loss of life, liable to suffer death or, in any other case, liable to life imprisonment.
- (2) For the purposes of this section, "failure to brief or to prepare for an operation" means—
 - (a) failing to ensure that soldiers are thoroughly briefed before an operation;
 - (b) failing to carry out de-briefing after an operation;
 - (c) failing to ensure personal preparation for an operation;
 - (d) failing to ensure group preparation for an operation;
 - (e) failing to ensure combat readiness of all soldiers;

- (f) failing to ensure thorough reconnaissance;
- (g) giving false or unreliable information about reconnaissance; or
- (h) neglecting training of soldiers.

122. Personal interests endangering operational efficiency

A person subject to military law who does any of the following acts commits an offence and is liable, on conviction, to life imprisonment—

- (a) exposing operational plans to unauthorised persons;
- (b) misusing operational funds, food or other supplies for personal interest;
- (c) capturing from the enemy goods for personal use instead of capturing materials for the Defence Forces;
- (d) failing to report and hand in goods captured from the enemy;
- (e) failing to ensure that goods captured from the enemy are brought to base and are accounted for; or
- (f) being drunk during an operation.

123. Careless shooting in operation

A person subject to military law who carelessly shoots any person or handles arms or ammunition in such a manner as to endanger lives of other persons in operation, commits an offence and is liable, on conviction, to life imprisonment.

124. Offences relating to operations

A person subject to military law who—

- (a) commits an act of violence to any person bringing material to the Defence Forces or to any forces cooperating with the Defence Forces;
- (b) irregularly detains or diverts any material being conveyed to any unit of the Defence Forces or of any forces cooperating with the Defence Forces;
- (c) without orders from his or her superior officer, improperly destroys or damages any property;
- (d) breaks into any house or other place with intention to plunder;
- (e) commits any offence against the property or person of any inhabitant or resident of a country in which he or she is serving;
- (f) steals from or with intent to steal, searches the body of any person killed or wounded in the course of war-like operations;
- (g) steals any money or property which has been left exposed or unprotected in consequence of war-like operations;
- (h) takes, otherwise than for the service of the Republic of Uganda, any money or property abandoned by the enemy; or
- (i) being a person in command of a unit or detachment of the Defence Forces, uses soldiers of his or her unit or permits or suffers soldiers of his or her unit to be used for carriage of merchandise for sale to soldiers of the unit or detachment for his or her own or another person's personal gain,

commits an offence and is liable, on conviction, to life imprisonment.

125. Offences relating to prisoners of war

A person subject to military law who—

- (a) by want of due precaution through disobedience of orders or willful neglect of duty, is made a prisoner of war;
- (b) having been made a prisoner of war, fails to rejoin the Defence Forces when able to do so; or
- (c) having been made a prisoner of war, serves with or aids the enemy,

commits an offence and is liable, on conviction, to suffer death.

126. Offences by persons in command when in action

A person in command of a vessel, aircraft, defence establishment or unit of the Defence Forces who—

- (a) when under orders to carry out an operation of war or on coming into contact with an enemy which it is his or her duty to engage, does not use his or her utmost exertion to bring the officers and militants under his or her command or his or her ship, vessel, aircraft or his or her other material into action;
- (b) being in action, does not, during the action in his or her own person and according to his or her rank, encourage the officers and militants under his or her command to fight courageously;
- (c) when capable of making a successful defence, surrenders his or her ship, material or unit to the enemy; or
- (d) gives premature orders to attack resulting in failure of operation,

commits an offence and, on conviction, where it results in failure of operation or loss of life, shall be sentenced to death or, in any other case, is liable to life imprisonment.

127. Treachery

A person subject to military law who, for any purpose prejudicial to the security or interests of Uganda—

- (a) infiltrates the Defence Forces or is an agent of a foreign power or of any force engaging in war or war-like activities against the Government;
- (b) consciously gives classified information to a foreign power or any force engaging in war or war-like activities against the Government or solicits information with a view to giving the information to such a power or force;
- (c) consciously gives confidential information to anyone without the knowledge and approval of the proper authority; or
- (d) consciously withholds vital information from the proper authorities,

commits the offence of treachery and is liable, on conviction, to suffer death.

128. Offences relating to security

(1) A person subject to military law who—

- (a) discloses by word of mouth or by document, confidential information to the enemy or to unauthorised members of the Defence Forces or the public;
- (b) talks about or discusses any confidential information in unauthorised places or with authorised persons within hearing distance of unauthorised persons;

- (c) gives a parole, watchword, password, countersign or identification signal different from that which he or she received or without authority, alters or interferes with any identification or other signal;
- (d) improperly occasions false alarm;
- (e) forces a safeguard or forces or strikes a sentinel; or
- (f) does or omits to do anything with intent to prejudice the security of the Defence Forces or forces cooperating with the Defence Forces,

commits an offence and is liable, on conviction, to suffer death.

- (2) For the purposes of this section—

“confidential information” means—

- (a) intelligence information;
- (b) information relating to the members' positions, materials, movements, preparations for operations of the Defence Forces or of any forces cooperating with the Defence Forces;
- (c) information relating to radio cryptographic system, aid, process, procedure, publication or document of the Defence Forces or of any forces cooperating with the Defence Forces;
- (d) parole, watchword, password, countersign or identification signal; or
- (e) any other informational material as may be prescribed;

“parole” means a special password used only by persons authorised to do so;

“safeguard” means anything that protects against loss or injury.

129. Offences relating to guard duties

- (1) A person subject to military law who—

- (a) assaults a person on guard duty;
- (b) by act, word or gesture wrongfully compels a person on guard duty to let him or her or any other person pass;
- (c) wrongfully evades a guard;
- (d) in any manner whatsoever prevents a person from doing his or her guard duty;
- (e) occasions false alarm to a person on guard duty; or
- (f) assaults, ill treats or uses unnecessary violence against a person in custody,

commits an offence and is liable, on conviction, to imprisonment for a term not exceeding five years.

- (2) For the purposes of this section, any reference to a person on guard shall be construed as a reference to a person who is posted or ordered to patrol or is a member of a guard or other party mounted or ordered to patrol for the purposes of—

- (a) protecting any person;
- (b) preventing or controlling access to or egress from any premises or place; or
- (c) regulating traffic by road or rail, river or lake.

Mutiny

130. Mutiny

- (1) A person subject to military law who—
- (a) plots, incites, conspires to cause, takes part in or endeavours to persuade any person to join in a mutiny;
 - (b) being present, does not use his or her utmost endeavours to suppress a mutiny; or
 - (c) being aware of an actual or intended mutiny, does not, without delay inform his or her superior officer of the mutiny,
- commits the offence of mutiny and is on conviction, where it results in failure of operation, loss of life or destruction of military operational materials, liable to suffer death or, in any other case, liable to life imprisonment.
- (2) In this section, the offence of mutiny shall be deemed to be committed when a combination of two or more persons subject to military law or persons two at least of whom are subject to military law, use any means under subsection (1)—
- (a) to overthrow or resist lawful authority in the Defence Forces or any forces cooperating with the Defence Forces or any part of the Defence Forces;
 - (b) to disobey such authority in such circumstances as to make disobedience subversive of discipline or with the object of avoiding any duty or service against or in connection with operations against the enemy; or
 - (c) to impede the performance of any duty or service in the Defence Forces or any forces cooperating with the Defence Forces or any part of the Defence Forces.

Insubordination

131. Disobeying lawful orders

- (1) A person subject to military law who either wilfully or through neglect, disobeys a lawful order commits an offence and is, on conviction, where it results in failure of operation or loss of life, liable to suffer death or, in any other case, liable to life imprisonment.
- (2) For the purposes of this section, “disobeying lawful orders” means—
- (a) failing to carry out lawful orders;
 - (b) failing to communicate lawful orders;
 - (c) breaking lines of formation;
 - (d) taking an unauthorised route while on operation;
 - (e) breaking off from the main operational group; or
 - (f) talking to unauthorised persons outside terms of reference while on operation.

132. Failure to execute one's duties

- (1) A person subject to military law who fails to execute his or her duties, commits an offence and is, on conviction, where it results in failure of operation or loss of life, liable to suffer death or, in any other case, liable to life imprisonment.

(2) For the purposes of this section, “failing to execute one’s duties” means—

- (a) failing to take charge of road blocks;
- (b) failing to oversee observation posts or, when acting as sentry or lookout, leaving posts before being regularly relieved or sleeping or being drunk;
- (c) failing to manage quarter guard or other guard duties;
- (d) failing to deliver messages or information on time;
- (e) mishandling, misplacing or losing information;
- (f) raising undue complaints over operations; or
- (g) otherwise failing to execute assigned duties or missions without reasonable excuse.

133. Violence to superior officer

A person subject to military law who unlawfully strikes or draws or lifts up a weapon against a superior officer, or uses or offers violence against a superior officer, commits an offence and is liable, on conviction, to imprisonment for a term not exceeding five years.

134. Insubordinate behaviour

A person subject to military law who uses threatening or insulting language to or behaves with contempt toward a superior officer commits an offence and is liable, on conviction, to imprisonment for a term not exceeding five years.

Disgraceful conduct

135. Spreading harmful propaganda

- (1) A person subject to military law who spreads harmful propaganda, commits an offence and is, on conviction, where there is failure of operation or loss of life, liable to suffer death or, in any other case, liable to life imprisonment.
- (2) For the purposes of this section, “spreading harmful propaganda” means—
 - (a) discouraging other soldiers from carrying out an operation;
 - (b) speculation about an operation;
 - (c) making oral or written statements ill of the Defence Forces or of the Government not being constructive criticism; or
 - (d) spreading false stories intended to undermine support for or morale of members of the Defence Forces or to incite support for or boost morale of the enemy.

136. Malingering or maiming

A person subject to military law who—

- (a) malingers, feigns disease or induces disease or infirmity;
- (b) intentionally aggravates or delays the cure of any disease or infirmity by misconduct or wilful disobedience of orders; or
- (c) wilfully maims or injures himself or herself or any other person who is in the Defence Forces or of any forces cooperating with the Defence Forces, whether at the instance of that person or not, with intent by doing so, to render himself or herself or that other person unfit for service, or causes

himself or herself to be maimed or injured by any person with intent to render himself or herself unfit for service,

commits an offence and is on conviction if he or she committed the offence on active service or when under orders for active service, or in respect of a person on active service or under orders for active service, liable to life imprisonment or, in any other case, liable to imprisonment for a term not exceeding two years.

137. Drunkenness

- (1) A person in the Defence Forces who is drunk, whether or not on duty, commits an offence and is liable, on conviction, to imprisonment for a term not exceeding seven years.
- (2) For the purposes of this section, a person is drunk if owing to the influence of alcohol, whether alone or in combination with any other circumstances, he or she is unfit to be entrusted with his or her duty or with any duty which he or she might be called upon to perform, or behaves in a disorderly manner or in a manner likely to bring discredit to the Defence Forces.

138. Taking or possessing drugs

A person subject to military law who takes or is in unlawful possession of bhanghi, cannabis, marijuana, cocaine or any other intoxicating drug as may be prescribed by the Defence Forces Council, commits an offence and is liable, on conviction, to imprisonment for a term not exceeding seven years.

139. Abuse of and violence to inferiors

A person subject to military law who unlawfully strikes, draws, lifts up a weapon against or in any way ill-treats any person in the Defence Forces who by reason of rank or appointment is subordinate to him or her, commits an offence and is liable, on conviction, to imprisonment for a term not exceeding five years.

140. False accusation, etc.

A person subject to military law who—

- (a) makes a false accusation against any officer or militant, knowing the accusation to be false; or
- (b) when seeking redress in a matter in which he or she considers that he or she has suffered any personal oppression, injustice or other ill-treatment or that he or she has any other cause for grievance, knowingly makes a false statement affecting the character of an officer or a militant which he or she knows to be false or knowingly, in respect of the redress so sought, suppresses any material facts,

commits an offence and is liable, on conviction, to imprisonment for a term not exceeding five years.

141. Quarrels and disturbances

A person subject to military law, who quarrels or fights with any other person or who uses provoking words or gestures towards any person tending to cause a quarrel or disturbance, commits an offence and is liable, on conviction, to imprisonment for a term not exceeding two years.

142. Disorders

A person subject to military law, who—

- (a) being concerned in a quarrel, fray or disorder refuses to obey an officer or militant, though of inferior rank, who orders him or her into arrest, or strikes or uses or offers violence to any such officer or militant;
- (b) strikes or uses or offers violence to any other person in whose custody he or she is placed;

- (c) resists an escort whose duty is to apprehend him or her or to have him or her in-charge; or
 - (d) breaks out of barracks, station, camp, quarters or ship,
- commits an offence and is liable, on conviction, to imprisonment for a term not exceeding two years.

143. Scandalous conduct by officers

- (1) An officer who behaves in a scandalous manner unbecoming of an officer, commits an offence and is liable, on conviction, to suffer dismissal from the Defence Forces with or without disgrace.
- (2) For the purposes of this section, "scandalous conduct" means the personal conduct of an officer which is generally against public order, expectations and morality, whether or not the conduct directly or indirectly affects others.

Desertion and absence without leave

144. Desertion

- (1) A person subject to military law, who deserts the Defence Forces, commits an offence and is, on conviction—
 - (a) if the desertion endangers life or leads to loss of life;
 - (b) if he or she deserts with arms or ammunition or other war materials; or
 - (c) if he or she deserts and joins the enemy,liable to suffer death or, in any other case, liable to life imprisonment.
- (2) For the purposes of this section, a person deserts who—
 - (a) being on or having been warned for active service, is absent without authority with the intention of avoiding that service;
 - (b) deserts from the Defence Forces and joins, reports to or otherwise assists the enemy;
 - (c) having been warned that his or her vessel or aircraft is under sailing or flight orders, is absent without authority, with the intention of missing that vessel or aircraft;
 - (d) absents himself or herself without authority from his or her unit or formation or from the place where his or her duty requires him or her to be, with the intention of not returning to that unit, formation or place;
 - (e) while absent with authority from his or her unit or formation or from the place where his or her duty requires him or her to be, at anytime during that absence, forms the intention of not returning to that unit, formation or place; or
 - (f) while absent with authority from his or her unit or formation or the place where his or her duty requires him or her to be, with the intention of not returning to that unit, formation or place, does any act or omits to do anything, the natural or probable consequence of which act or omission is to preclude his or her return to that unit, formation or place at the time required.
- (3) A person who has been absent without authority for a continuous period of twenty-one days or more, shall, for the purposes of this Act, unless the contrary is proved, be presumed to have deserted.

145. Connivance at desertion

A person subject to military law, who—

- (a) being aware of the desertion or intended desertion of a person from the Defence Forces, does not, without reasonable excuse, inform the Defence Forces authorities; or
- (b) fails to take any steps in his or her power to cause the arrest of a person known by him or her to be a deserter,

commits an offence and is liable, on conviction, to imprisonment for a term not exceeding five years.

146. Absence without leave

- (1) A person subject to military law, who absents himself or herself without leave commits an offence and is liable, on conviction, to imprisonment for a term not exceeding four years.
- (2) For the purposes of this section, a person absents himself or herself without leave who—
 - (a) without authority, leaves his or her unit, formation or the place where his or her duty requires him or her to be; or
 - (b) with authority, is absent from his or her unit, formation or the place where his or her duty requires him or her to be, but fails to return to that unit, formation or place at the expiration of the period for which his or her absence was authorised.

147. False statement in respect of leave

A person subject to military law who knowingly makes a false statement for the purposes of obtaining or prolonging leave of absence from his or her unit, formation or the place where his or her duty requires him or her to be, commits an offence and is liable, on conviction, to imprisonment for a term not exceeding two years.

Offences relating to vessels, aircraft and vehicle**148. Offences relating to convoys**

A person subject to military law who, while serving in any ship or vessel belonging to, or being used by the Defence Forces and involved in the conveying and protection of another ship or vessel—

- (a) fails to defend any ship, vessel or goods under convoy;
- (b) refuses to fight in the defence of a ship or vessel in his or her convoy when it is attacked; or
- (c) cowardly abandons or exposes a ship or vessel in his or her convoy to hazards,

commits an offence and is liable, on conviction, to suffer death.

149. Losing, stranding or hazarding vessels or aircraft

A person who wilfully hijacks or through default, loses, strands or hazards or suffers to be lost, stranded or hazarded any ship, vessel, armoured vehicle or aircraft belonging to or used by the Defence Forces or forces cooperating with the Defence Forces, commits an offence and is liable, on conviction, to suffer death.

150. Wrongful acts in relation to aircraft, etc.

A person who—

- (a) in the use of, or in relation to, any aircraft or aircraft material, wilfully or negligently or contrary to regulations, orders or instructions, does any act or omits to do anything which act or omission results or is likely to result in damage to or destruction or loss of any aircraft or aircraft material of the Defence Forces or forces cooperating with the Defence Forces;
- (b) wilfully or negligently or contrary to regulations, orders or instructions, does any act or omits to do anything which act or omission results in the loss of any aircraft or aircraft material of the Defence Forces or forces cooperating with the Defence Forces; or
- (c) during a state of war, wilfully or negligently causes the confiscation by or under the authority of a neutral state of any of the aircraft of the Defence Forces or of any forces cooperating with the Defence Forces,

commits an offence and is liable, on conviction, to suffer death.

151. Attempt to hijack aircraft, vessel, etc.

A person who attempts to hijack an aircraft, vessel or ship belonging to or under use by, the Defence Forces or forces cooperating with the Defence Forces, commits an offence and is liable, on conviction, to suffer death.

152. Dangerous acts in relation to aircraft

A person subject to military law who, intentionally or negligently, does or omits to do an act in the use of or in relation to an aircraft, or aircraft material, which act or omission causes or is likely to cause loss of life or bodily injury to any person, commits an offence and is liable, on conviction, to life imprisonment.

153. Disobedience of commander's orders

- (1) A person subject to military law who, when in an aircraft, disobeys any lawful command given by the commander of the aircraft in relation to the flying or handling of the aircraft, or relating to the safety of the aircraft, whether or not the commander is a person subject to military law, commits an offence and is liable, on conviction, to life imprisonment.
- (2) For the purposes of this section—
 - (a) a person, whatever his or her rank, shall, when he or she is in an aircraft, be under the command of the commander of the aircraft as respects all matters relating to the flying, handling or safety of the aircraft whether or not the commander is a person subject to military law; and
 - (b) if the aircraft is a glider and is being towed by another aircraft, the commander of the glider shall, so long as his or her glider is being towed, be under the command of the commander of the aircraft as respects all matters relating to the flying or handling of the glider or affecting the safety of the glider, whether or not the commander is a person subject to military law.

154. Inaccurate certificate

Except where the person proves that he or she took reasonable steps to ensure that the certificate was accurate, a person who signs an inaccurate certificate in relation to an aircraft or aircraft material, commits an offence and is liable, on conviction, to imprisonment for a term not exceeding seven years.

155. Low flying

A person subject to military law who flies an aircraft at a height lower than the height prescribed by regulations or in any other manner so as to cause or to be likely to cause annoyance to any person except—

- (a) while taking off or landing; or
- (b) in such other circumstances as may be prescribed,

commits an offence and is liable, on conviction, to imprisonment for a term not exceeding five years.

156. Unauthorised use of vehicles

Any person who—

- (a) uses a vehicle of the Defence Forces for unauthorised purposes; or
- (b) uses a vehicle of the Defence Forces contrary to any regulations made under this Act, orders or instructions,

commits an offence and is liable, on conviction, to imprisonment for a term not exceeding four years.

157. Improper driving of vehicles

Any person subject to military law who—

- (a) drives a vehicle of the Defence Forces recklessly or in a manner that is dangerous to any person or property having regard to all the circumstances of the case, or, having charge of and being in or on such a vehicle, causes or by wilful neglect permits it to be so driven;
- (b) while his or her ability to drive is impaired by alcohol or a drug, drives or attempts to drive a vehicle of the Defence Forces; or
- (c) having charge of a vehicle of the Defence Forces, knowingly permits it to be driven by a person whose ability to drive is impaired by alcohol or a drug,

commits an offence and is liable, on conviction, to imprisonment for a term not exceeding five years.

Offences relating to other property**158. Protection of defence stores**

- (1) The Minister shall, by notice in the *Gazette*, declare and make known what mark or marks when applied to any arms, clothing, equipment, vehicle, aircraft or boat shall denote them as property of the State.
- (2) A person who—
 - (a) with fraudulent intent applies to any arms, clothing, equipment, vehicle, aircraft or boat any mark referred to in subsection (1);
 - (b) fraudulently defaces or conceals any mark referred to in subsection (1) on any arms, clothing, equipment, vehicle, aircraft or boat; or
 - (c) unlawfully receives, possesses, sells or delivers any arms, clothing, equipment, vehicle, aircraft or boat bearing any mark referred to in subsection (1) or forbidden by or under this Act to be sold, pledged or otherwise disposed of,

commits an offence and is liable, on conviction, to imprisonment for life.

159. Unlawful purchase, etc. of military stores

- (1) Any person who acquires military stores or solicits or procures any person to dispose of any military stores, commits an offence, unless he or she proves either—
 - (a) that he or she did not know and could reasonably not be expected to know, that the chattels in question were military stores;
 - (b) that those chattels had, by earlier transaction, been disposed of by order or with the consent of some person or authority who had, or whom he or she had reasonable cause to believe had, power to give the order or consent; or
 - (c) that those chattels had become the property of an officer or a militant who had ceased to be a member of the Defence Forces, or of the personal representative of a person who had died,and is liable, on conviction, to a fine not exceeding three hundred forty currency points or to imprisonment for a term not exceeding fourteen years, or both.
- (2) A member of the Defence Forces or Police Force may arrest without warrant any person whom he or she has reasonable grounds for suspecting to have committed an offence under this section, and may seize any property which he or she has reasonable grounds for suspecting to have been the subject of the offence.
- (3) A member of a court martial may, if satisfied by evidence on oath that a person within the jurisdiction of the court martial, has, or is reasonably suspected to have in his or her possession, any property which has been the subject of an offence under this section, grant a warrant to search for the property as in the case of stolen goods.
- (4) Any property suspected to have been the subject of the offence under this section which is found on the search shall be seized by the officer charged with the execution of the warrant, and that officer shall bring the person in whose possession or keeping the property is found before a court martial.
- (5) In this section—

“acquire” means buy, take in exchange, take in pawn or otherwise receive, whether apart from this section the receiving is lawful or not;

“dispose” means sell, give in exchange, pledge or otherwise hand over, whether apart from this section the handing over is lawful or not; and

“military stores” means any chattel of any description belonging to the Government which has been issued when required, and includes, any chattel which had belonged and had been issued or held as described in this subsection at some past time.

160. Destruction, loss or improper disposal of property

A person subject to military law, who—

- (a) wilfully destroys or damages or loses by neglect or improperly sells or wastefully expends any property—
 - (i) of the Defence Forces or forces cooperating with the Defence Forces; or
 - (ii) contributed by members of the Defence Forces for their use; or
- (b) wilfully destroys or damages public or private property,

commits an offence and is liable, on conviction, to imprisonment for a term not exceeding seven years.

161. Selling or pawning decorations

A person subject to military law who sells, pawns or otherwise disposes of any cross, medal, insignia or other decoration, commits an offence and is liable, on conviction, to imprisonment for a term not exceeding two years.

162. Unauthorised sale or wearing of uniforms, etc.

(1) Any person who, without authority—

- (a) sells, offers or exposes for sale or wears or uses any uniform supplied to or authorised for use by any member of the Defence Forces;
- (b) manufactures, sells, offers or exposes for sale, wears or uses any uniform so nearly resembling the uniform referred to in paragraph (a), as to be likely to deceive; or wears or uses any decoration supplied to or authorised for use by any member of the Defence Forces or any decoration so nearly resembling that decoration as to be likely to deceive,

commits an offence and is liable, on conviction, to imprisonment for a term not exceeding seven years.

- (2) Subsection (1) does not apply in relation to any uniform or decoration for the purposes of any *bona fide* stage, film or television production or military representation.
- (3) Any person who by act, words, conduct or otherwise, falsely represents himself or herself to be a person who is or has been entitled to wear or use any uniform or decoration referred to in subsection (1), commits an offence and is liable, on conviction, to imprisonment for a term not exceeding three years.
- (4) In any prosecution for an offence under this section relating to any act done without due or lawful authority, it shall be presumed, until the contrary is proved, that the accused had no such authority.
- (5) In this section, “uniform” means any article of wearing apparel and includes a badge, button, braid or insignia, worn in association with any particular item or items of clothing, and a tie.

163. Causing fire

Any person who wilfully or negligently or contrary to regulations made under this Act, orders or instructs or does any act or omits to do anything which causes or is likely to cause fire to occur in any establishment, works, or material for defence, commits an offence and is liable, on conviction, to life imprisonment.

Offences relating to process of law, arrests, service custody and military courts**164. Interfering with process of law**

- (1) A person subject to military law, who unlawfully interferes with the process of law as set out in this Act, commits an offence and is liable, on conviction, to imprisonment for a term not exceeding seven years.
- (2) For the purposes of this section, “unlawfully interferes with the process of law” means—
 - (a) knowingly withholding material evidence or information;
 - (b) fabricating or destroying evidence;
 - (c) interfering with a witness in the course of an investigation or proceedings of a case;
 - (d) unlawful release of a suspect in lawful custody or arrest or otherwise breaking the rules of security of prisoners as may be prescribed by the Defence Forces Council; or

- (e) premature leaking of information about an investigation or any other interference that may jeopardise the investigation.

165. Negligent or wilful interference with custody

A person subject to military law, who—

- (a) without authority, sets free or authorises or otherwise facilitates the setting free of any person in custody;
- (b) negligently or wilfully allows to escape, any person who is committed to his or her charge or who it is his or her duty to guard or keep in custody; or
- (c) assists any person in escaping or in attempting to escape from his or her custody,

commits an offence and is liable, on conviction, to imprisonment for a term not exceeding seven years.

166. Escape from custody

A person subject to military law who, being under arrest or confinement or in prison or otherwise in lawful custody, escapes, commits an offence and is liable, on conviction, to imprisonment for a term not exceeding five years.

167. Obstruction of arresting officers

A person subject to military law, who—

- (a) resists or wilfully obstructs an officer or a militant in the performance of any duty pertaining to the arrest, custody or confinement of any other person subject to military law; or
- (b) when called upon, refuses or neglects to assist an arresting officer or militant in the performance of that duty,

commits an offence and is liable, on conviction, to imprisonment for a term or exceeding five years.

168. Unlawful detention of person

A person subject to military law, who—

- (a) unlawfully detains any other person in arrest or in confinement; or
- (b) unnecessarily detains any other person without bringing him or her to trial, or fails to bring that other person's case before the proper authority for investigation,

commits an offence and is liable, on conviction, to imprisonment for a term not exceeding two years.

169. Offences in respect of military courts

(1) A person who—

- (a) being duly summoned or ordered to attend as a witness before a military court, makes default in attending;
- (b) refuses to take an oath or make a solemn affirmation lawfully required by a military court to be taken or made;
- (c) refuses to produce any document in his or her power or control lawfully required by a military court to be produced by him or her;
- (d) when a witness, refuses to answer any question to which a military court lawfully requires an answer;

- (e) uses insulting or threatening language before or causes any interruption or disturbance in the proceedings of a military court;
 - (f) commits or omits to perform any act before a military court which if done or made before a civil court would constitute contempt of that court; or
 - (g) being an advocate, conducts himself or herself in the manner described in section [212\(9\)](#), commits an offence and is liable, on conviction, to imprisonment for a term not exceeding five years.
- (2) Where an offence under this section is committed at or in relation to a court martial, that court martial may, by an order signed by a member of that court, order that the offender shall undergo a term of imprisonment or detention for a period not exceeding thirty days.
- (3) Where any order is issued under subsection (2), the offender shall not be liable to any other proceedings under military law in respect of the contempt in consequence of which the order is issued.
- (4) For the purposes of this section, "military court" includes a board of inquiry or any other board established by law.

Miscellaneous offences

170. Disturbance in billets, etc.

Any person subject to military law who—

- (a) misbehaves, by violence, extortion or making disturbances or otherwise in billets in which he or she or any other person is billeted or in any premises in which accommodation for material of the Defence Forces has been provided; or
- (b) fails to comply with regulations made under this Act in respect of payment of the just demands of the person on whom he or she or any officer or militant under his or her command is, or has been billeted or the occupant of premises on which such material is or has been accommodated,

commits an offence and is liable, on conviction, to imprisonment for a term not exceeding seven years.

171. Offences in relation to documents

Any person who—

- (a) wilfully or negligently makes a false statement or entry in a document made or signed by him or her that is required for the purposes of this Act or any regulations made under it, or who being aware of the falsity of a statement or entry in such a document, orders the making or signing of it;
- (b) when signing a document required for such purposes leaves blank any material part for which his or her signature is a voucher; or
- (c) with intent to injure any person or with intent to deceive, suppresses, defaces, alters or makes away with any document or file kept, made or issued for any such purpose,

commits an offence and is liable, on conviction, to imprisonment for a term not exceeding two years.

172. Obstructing Defence Forces

Any person who wilfully obstructs or interferes with any part of the Defence Forces or any member of the Defence Forces in the proper performance of any military service or duty under this Act, commits an offence and is liable, on conviction, to imprisonment for a term not exceeding five years.

173. Harbours, aiding or inducing members of Defence Forces to dereliction of duty

- (1) Any person who—
- (a) assists or harbours any officer or militant who to his or her knowledge has committed an offence under this Act;
 - (b) induces or attempts to induce any officer or militant to neglect or to act in conflict with his or her military duty;
 - (c) is a party to, aids or abets or incites the commission of any act by which—
 - (i) any lawful order given to any officer or militant; or
 - (ii) any law relating to the Defence Forces with which it is the duty of any officer or militant to comply,may be evaded or infringed;
 - (d) whether in propagating religious beliefs or otherwise, uses any language or does any act or thing with intent to recommend to, encourage, aid, incite, instigate, suggest to or otherwise cause any officer or militant of a regular force to refuse or fail to carry out any duties to which that officer or militant is or may become liable under this Act; or
 - (e) supplies or is a party to supplying any officer or militant with intoxicating liquor when that officer or militant is on military duty and prohibited by or under this Act from receiving or taking intoxicating liquor,
- commits an offence and is liable, on conviction, to imprisonment for a term not exceeding five years.
- (2) Notwithstanding subsection (1), liquor may at any mess or canteen which is conducted under the authority of a commander, be sold or supplied to any officer or militant whether of the force commanded by the commander or not.

174. Other fraudulent offences

A person subject to military law, who—

- (a) connives at the exaction of an exorbitant price for property purchased or rented by a person supplying property or services to the Defence Forces;
- (b) improperly demands or accepts compensation, consideration or personal advantage in respect of the performance of any military duty or in respect of any matter relating to the Defence Forces;
- (c) receives directly or indirectly, whether personally or by or through any member of his or her family or a person under his or her control, or for his or her benefit, any gift, loan, promise, compensation or consideration either in money or otherwise, from any person, for assisting or favouring any person, in the transaction of any business relating to the Defence Forces or to any forces cooperating with the Defence Forces or to any mess, institute or canteen operated for the use and benefit of members of those forces;
- (d) demands or accepts compensation, consideration or personal advantage for conveying a vessel entrusted to his or her care;
- (e) being in command of a vessel or aircraft, takes or receives on board a person, goods or merchandise that he or she is not authorised to take or receive on board;
- (f) unlawfully erects or places barriers in or across any road or street or on a path or in any public place within Uganda; or

(g) commits any act of a fraudulent nature not expressly specified in this Act,
commits an offence and is liable, on conviction, to imprisonment for a term not exceeding seven years.

175. Offences in relation to redress of wrongs

Any person subject to military law, who, when a complaint by a member of the Defence Forces has been made to him or her under section 99, or regulations made under this Act—

- (a) unduly delays—
 - (i) in redressing the wrong complained of; or
 - (ii) in sending the complaint to higher authority in the prescribed manner; or
- (b) complains to higher authority when it is his or her duty to direct his or her complaint to his or her commanding officer or other authority,

commits an offence and is liable, on conviction, to imprisonment for a term not exceeding one year.

176. Conduct prejudicial to good order and discipline

- (1) Any act, conduct, disorder or neglect to the prejudice of the good order and discipline of the Defence Forces shall be an offence.
- (2) A person convicted of an offence under subsection (1) is liable to dismissal with disgrace from the Defence Forces.
- (3) No person may be charged under this section with any offence for which special provision is made in any other provision of this Act.
- (4) The conviction of a person charged under this section shall not be invalid by reason only of the charge being in contravention of subsection (3) unless it appears that an injustice has been done to the person charged by reason of the contravention; but the responsibility of any officer or militant for that contravention shall not be affected by the validity of the conviction.
- (5) For the purposes of this section, an act or omission constituting a contravention by any person of—
 - (a) any regulations, orders or instructions published for the general information and guidance of the Defence Forces to which that person belongs, or to which he or she is attached or seconded; or
 - (b) any general, garrison, unit, station, standing, local or other orders,shall be an act, conduct, disorder or neglect to the prejudice of the good order and discipline of the Defence Forces.
- (6) Nothing in subsection (5) shall affect the general effect of subsections (1) and (2).

General

177. Service trial of civil offences

- (1) Any person subject to military law, who does or omits to do an act—
 - (a) in Uganda, which constitutes an offence under the Penal Code Act or any other enactment;
 - (b) outside Uganda, which would constitute an offence under the Penal Code Act or any other enactment if it had taken place in Uganda,commits a service offence and is liable, on conviction, to a punishment as prescribed in subsection (2).

- (2) Where a military court convicts a person under subsection (1), the military court shall impose a penalty in accordance with the relevant enactment and may, in addition to that penalty, impose the penalty of dismissal with disgrace from the Defence Forces or any less punishment prescribed by this Act.

178. Conspiracy

Any person subject to military law who conspires with any other person, whether or not the other person is subject to military law, to commit a service offence, commits an offence and is liable, on conviction, to imprisonment for a term not exceeding five years.

179. Conviction for related or less serious offences

- (1) A person charged with desertion may be found guilty of attempting to desert or of being absent without leave.
- (2) A person charged with attempting to desert may be found guilty of being absent without leave.
- (3) A person charged with any of the offences specified in section 133 may be found guilty of any other offence specified in that section.
- (4) A person charged with any of the offences specified in section 134 may be found guilty of any other offence specified in that section.
- (5) A person charged with a service offence may, on failure of proof of an offence having been committed under circumstances involving a higher punishment, be found guilty of the same offence as having been committed under circumstances involving a lower punishment.
- (6) Where a person is charged with an offence under section 176 and the charge is one upon which, if he or she had been tried by a civil court in Uganda for that offence, he or she might have been found guilty of any other offence, he or she may be found guilty of that other offence.

180. Ignorance no excuse

The fact that a person is ignorant of—

- (a) any provision of this Act;
- (b) any regulations made under this Act; or
- (c) any order or instruction duly notified under this Act,

is no excuse for any offence.

181. Rules of civil courts applicable

All rules and principles followed in civil courts in criminal proceedings that would render any circumstances a justification or excuse for any act or omission or a defence to any charge, shall be applicable to any defence to a charge under this Act except where those rules and principles are altered by or are inconsistent with this Act.

182. Aiding and abetting commission of offence, etc.

- (1) Any person subject to military law who—
 - (a) does or omits to do an act for the purpose of aiding any person to commit an offence;
 - (b) abets any person in the commission of an offence; or

- (c) counsels or procures any person to commit an offence,
commits an offence and is liable, on conviction, to the same punishment as the person who commits the actual offence.
- (2) Every person who, having an intent to commit an offence, does or omits to do an act for the purpose of accomplishing his or her object, commits an attempt to commit the offence intended whether under the circumstances it was possible to commit such an offence or not and is, on conviction—
 - (a) if the attempt was to commit an offence where a person convicted of it is liable to the punishment of death or imprisonment for a term of fourteen years or upwards, liable, if no other punishment is provided, to imprisonment for a term of seven years; and
 - (b) in any other case, liable to imprisonment for a term not exceeding two years.
- (3) When two or more persons form a common intention to prosecute an unlawful purpose in conjunction with one another, and in the prosecution of that purpose an offence is committed of such a nature that its commission was a probable consequence of the prosecution of the purpose, each of them is deemed to have committed the offence.

Part VII – Arrests, searches and handling of persons arrested

183. Arrests generally

- (1) A person who has committed, is found committing, is suspected of being about to commit, or is suspected of or charged under this Act with having committed a service offence, may be placed under arrest.
- (2) For the avoidance of doubt, the ordinary arresting officer shall be the commanding officer of the unit to which the suspect belongs but in cases where it is impracticable for him or her to do so, any member of the Defence Forces may, without warrant, in the circumstances mentioned in subsection (1) conduct the arrest of a suspect of equal or lower rank.
- (3) A member of the Defence Forces or the public may, without warrant, conduct the arrest of any member of the Defence Forces found committing or suspected of being about to commit a service offence.
- (4) A soldier may, without warrant, conduct the arrest of a member of the Defence Forces of any rank who is wanted to answer charges in respect of any of the following offences—
 - (a) murder;
 - (b) treason;
 - (c) mutiny;
 - (d) rape;
 - (e) defilement;
 - (f) desertion;
 - (g) breaking concealment;
 - (h) careless shooting of a fellow soldier or civilian; or
 - (i) any other offence carrying the maximum death sentence.
- (5) A person authorised to effect an arrest under this Act may use such force as is reasonably necessary for that purpose.

184. Search of members or premises

- (1) Subject to this section, if it appears to a member of a court martial from information on oath that there are reasonable grounds for suspecting that there is with any officer or militant or upon or at any premises which are occupied by military personnel—
 - (a) stolen property or anything with respect to which any offence under this Act has been or is on reasonable grounds suspected to have been committed; or
 - (b) anything as to which there are reasonable grounds for believing—
 - (i) that it will afford evidence as to the commission of; or
 - (ii) that it is intended to be used for the purpose of committing any offence under this Act,

he or she may, in writing authorise the search by any officer or militant of such person or premises and the seizure of any such property or thing.
- (2) An officer or militant authorised under subsection (1) to carry out any search or to seize any property or thing shall—
 - (a) be superior in rank to the officer or militant whose person is to be searched or in whose charge or control the premises are; and
 - (b) deliver safely to the commanding officer of the officer or militant referred to in paragraph (a) any property or thing seized.
- (3) If an officer of the rank of Major or above believes on reasonable grounds that the delay in obtaining written authority under subsection (1) would defeat or prejudice the object of a search, the officer may, subject to subsection (2), authorise the search without the written authority.
- (4) Any search carried out under this section shall be conducted in the presence of the officer or militant in whose charge or under whose control the premises which are being searched are, except that if—
 - (a) the delay in securing the presence of the officer or militant is likely to prejudice the object of the search; or
 - (b) having regard to the exigencies of military operations, his or her presence cannot be readily secured,

the search may be made in the absence of the officer or militant but in the presence of at least two other members of the Defence Forces.
- (5) The authority of the officer or militant to search is limited to seizing those articles which he or she is lawfully authorised to seize.
- (6) If the searching officer or militant seizes any other items which are not specified under subsection (5), the searching officer or militant may be protected only if he or she reasonably believed them to be included.
- (7) In this section, “premises” includes any place, vehicle, vessel, aircraft or receptacle whether similar to the foregoing or not.
- (8) This section is in addition to and not in derogation of section 159(3).
- (9) This section does not apply to a member of the reserve forces unless that member has been mobilised under section 30.

185. Appointment and powers of specially appointed personnel

An officer or a militant appointed under regulations made for the purpose may—

- (a) detain or arrest without a warrant any person who is subject to military law regardless of the rank or status of that person, who has committed, is found committing, is suspected of or charged under this Act with having committed a service offence; and
- (b) exercise such other powers as may be prescribed for the enforcement of military law.

186. Handling of persons arrested

- (1) A person effecting an arrest under this Act shall immediately commit the person arrested to civil custody or service custody or take the person to the unit or formation with which he or she is serving or to any other unit or formation of the Defence Forces and shall, at the time of the committal, or as soon as is practicable after that, but in any case not later than twenty-four hours, deliver to the officer or militant in whose custody that person is committed, a statement in writing, signed by himself or herself stating the nature of the offence the arrested person is alleged to have committed and the particulars of the offence.
- (2) An officer or a militant commanding a guard, guardroom or safeguard or an officer or a militant appointed under section [185](#), shall receive a person committed to his or her custody and shall as soon as is practicable, and in any case within twenty-four hours, give in writing to the officer or militant to whom it is his or her duty to report, a statement—
 - (a) stating the name of the person committed to his or her custody;
 - (b) stating the particulars of the offence alleged to have been committed by that person so far as is known;
 - (c) stating the name and rank of the officer, militant or other person by whom the person so committed was placed in custody; and
 - (d) attaching the statement received under subsection [\(1\)](#).
- (3) Copies of the statement made under subsection [\(2\)](#) shall be submitted to—
 - (a) the commanding officer of the unit of the detained person;
 - (b) the Service Chief of Military Intelligence and Security or his or her representative; and
 - (c) the Service Chief of Legal Services or his or her representative.
- (4) If there is no statement received under subsection [\(1\)](#), the reporting officer or militant shall inform the officer or militant to whom it is his or her duty to report, of the following—
 - (a) the name of the committed person;
 - (b) the name of the committing officer or militant; and
 - (c) the date and time of committal,and seek for advice as to whether or not he or she should continue to detain the person.

187. Irregular detention

- (1) A person subject to military law who, when another person subject to military law is under arrest, fails to release or effect the release of that other person when it is his or her duty to do so, commits an offence.

- (2) A person subject to military law who, having committed a person to the custody of any officer or militant, fails without reasonable cause to deliver—
- (a) at the time of committing; or
 - (b) if it is not practicable so to do, at the time of the committal, then within twenty-four hours thereafter,
- to the person to whose custody the person was committed, a statement in writing signed by himself or herself of the nature of the offence which the arrested person is alleged to have committed and the particulars of the offence, commits an offence.
- (3) Where the arrested person is committed to the custody of a person subject to military law who is in command of a guard, guard room or safeguard, then if without reasonable cause that person does not as soon as is practicable and in any case not later than twenty-four hours after the committal, give to the person to whom it is his or her duty to report—
- (a) a written statement containing so far as known to him or her, the name of the arrested person and the particulars of the alleged offence and the name and rank or other description of the person by whom the arrested person is alleged to have committed the offence; and
 - (b) if he or she has received it, the statement required by section [186\(1\)](#),
- commits an offence.
- (4) A person who commits an offence under this section is liable, on conviction, to imprisonment for a term not exceeding two years.

188. Report of delay of trial

- (1) Where a person triable under military law has been placed under arrest for a service offence and remains in custody for forty-eight hours without his or her trial by a military court having commenced, his or her commanding officer shall make a report to the Service Chief of Personnel and Administration and the Service Chief Political Commissar stating the reasons for delaying the trial and shall release the prisoner on conditional bond after seventy-two hours.
- (2) A person held in custody in the circumstances mentioned in subsection (1) who has been continuously so held for twenty-eight days without commencement of his or her trial by a military court, may, at the expiration of that period, petition the President or such other authority as the President may appoint in writing for that purpose, to be released from custody or for the disposal of the case.
- (3) A person held in custody in the circumstances mentioned in subsection (1) shall be freed by his or her commanding officer when a period of ninety days continuous custody from the time of arrest has expired unless his or her trial by a military court has commenced.
- (4) A person who has been freed from custody under subsections (2) and (3), shall not be subject to re-arrest for the offence for which he or she was originally arrested, except on the written order of the Chief of Defence Forces.
- (5) Where the President orders a person's release, that person shall not be subject to re-arrest for the offence for which he or she was originally arrested.
- (6) The conditional bond under subsections (1) and (3) shall not apply in the case of a person held in custody for the purpose of trial for an offence punishable with death or a term of imprisonment exceeding five years.

Part VIII – Military courts

Summary trial authority

189. Trial by commanding officer or officer commanding

- (1) Subject to this section, a commanding officer or an officer commanding may try an accused person by summary trial.
- (2) An accused person may be tried by a commanding officer or an officer commanding only if the following conditions are satisfied—
 - (a) the accused is either a junior officer or a militant;
 - (b) the offence is one that the commanding officer or officer commanding is, by this Act or regulations made under this Act, authorised to try;
 - (c) having regard to the gravity of the offence, the commanding officer or officer commanding considers that his or her powers of punishment are adequate; and
 - (d) the commanding officer or officer commanding is not precluded from trying the accused person by reason of his or her election to be tried by court martial.
- (3) Except as otherwise expressly provided under this Act, a commanding officer or an officer commanding at a summary trial may pass a sentence in which any one or more of the following punishments may be included—
 - (a) detention for a period not exceeding six months;
 - (b) forfeiture of seniority;
 - (c) severe reprimand;
 - (d) reprimand;
 - (e) a fine not exceeding basic pay for one month; or
 - (f) minor punishments as may be prescribed.
- (4) Each punishment specified in subsection (3) shall be deemed to be a punishment less than any other punishment preceding it.
- (5) Officers senior in command to the commanding officer or officer commanding shall not, except in exercise of their appellate powers, interfere with the powers of the commanding officer or officer commanding under this section.

190. Trial by superior authority

- (1) Subject to this section, a superior authority may try a senior army officer by summary trial.
- (2) An accused person who is a senior army officer may be tried by a superior authority only if the following conditions are satisfied—
 - (a) the superior authority is equal to or higher in rank than the accused person;
 - (b) the offence is one that the superior authority is by this Act or regulations made under the Act authorised to try;
 - (c) having regard to the gravity of the offence, the superior authority considers that his or her powers of punishment are adequate; and

- (d) the superior authority is not precluded from trying the accused person by reason of his or her election to be tried by court martial.
- (3) Subject as otherwise expressly provided under this Act, a superior authority at a summary trial may pass a sentence in which any one or more of the following punishments is included—
 - (a) forfeiture of seniority;
 - (b) severe reprimand;
 - (c) reprimand; or
 - (d) fine.

191. Offences triable by summary trial authority and limitation on sentencing

- (1) The offences which may be tried by a summary trial authority shall be as specified in Schedule 8 to this Act.
- (2) Such punishments as are, in regulations specified as requiring approval before they are imposed by a summary trial authority, shall not be imposed until approval has been obtained in the manner prescribed in such regulations.

Unit disciplinary committees and courts martial

192. Division court martial

There shall be in each division or equivalent formation of the Defence Forces a division court martial with unlimited original jurisdiction under this Act which shall consist of—

- (a) a chairperson who shall not be below the rank of major;
- (b) two senior officers;
- (c) two junior officers;
- (d) a political commissar; and
- (e) one non-commissioned officer,

all of whom shall be appointed by the High Command for a period of one year.

193. Unit disciplinary committee

- (1) There shall be a unit disciplinary committee for each unit of the Defence Forces, which shall consist of—
 - (a) a chairperson who shall not be below the rank of captain;
 - (b) the administration officer of the unit;
 - (c) the political commissar of the unit;
 - (d) the regiment sergeant major or company sergeant major of the unit;
 - (e) two junior officers; and
 - (f) one private.
- (2) The quorum of a unit disciplinary committee shall be five members including the chairperson.
- (3) A unit disciplinary committee shall have powers to try any person for any non-capital offence under this Act.

- (4) A unit disciplinary committee shall have powers to impose any sentence authorised by law.

194. Convening authority

- (1) The High Command or any other authority as may be authorised for that purpose by the High Command may convene a military court.
- (2) A division commander or a commander of an equivalent formation may convene a unit disciplinary committee.

195. General Court Martial

- (1) There shall be a General Court Martial for the Defence Forces which shall consist of—
 - (a) a chairperson who shall not be below the rank of lieutenant colonel;
 - (b) two senior officers;
 - (c) two junior officers;
 - (d) a political commissar; and
 - (e) one non-commissioned officer,all of whom shall be appointed by the High Command for a period of one year.
- (2) The General Court Martial shall have unlimited original jurisdiction under this Act and shall hear and determine all appeals referred to it from decisions of division courts martial and unit disciplinary committees.
- (3) The General Court Martial shall have revisionary powers in respect of any finding, sentence or order made or imposed by any summary trial authority or unit disciplinary committee, to be exercised in accordance with the provisions of Part [XIII](#).
- (4) The General Court Martial may sit at any place.

196. Provisions applying to division courts martial and General Court Martial

The following provisions shall apply to a division court martial and the General Court Martial—

- (a) all members of a division court martial and the General Court Martial shall be eligible for re-appointment;
- (b) the High Command shall appoint such number of reserve members as it may decide to sit on the court, any of whom may be called upon to sit as a member of the court for the purpose of constituting a full court or realising quorum;
- (c) when the court is trying an accused person for a capital offence, all members of the court shall be present and, in any other case, the quorum shall be five members.

197. Court Martial Appeal Court

- (1) There shall be a Court Martial Appeal Court for the Defence Forces which shall hear and determine all appeals referred to it under this Act from decisions of the General Court Martial.
- (2) The Court Martial Appeal Court shall consist of—
 - (a) a chairperson who shall be an advocate qualified for appointment as a judge of the High Court;
 - (b) two senior officers of the Defence Forces; and
 - (c) two advocates who are members of the Defence Forces.

- (3) There shall be a registrar of the Court Martial Appeal Court who shall be a legally qualified person appointed by the High Command.
- (4) The quorum of the Court Martial Appeal Court shall be—
 - (a) when considering an appeal against a judgment involving a sentence of death, five members; and
 - (b) in any other case, three members including the chairperson.

198. Field court martial

- (1) There shall be field courts martial which shall consist of the field commander of the operation as the chairperson and eight other members appointed in writing by the deploying authority before departure.
- (2) A field court martial shall only operate in circumstances where it is impracticable for the offender to be tried by a unit disciplinary committee or division court martial.

199. Decisions of courts martial and unit disciplinary committees

- (1) The verdict of a court martial or unit disciplinary committee shall be by majority opinion and when a decision is reached in that manner, the decision shall be binding on all members of the court concerned.
- (2) It shall be an offence for any member who takes part in the proceedings of a court martial or unit disciplinary committee to later disassociate himself or herself from some decision of that court and anybody found guilty of that offence shall be dismissed from the court by the High Command.

200. Staff of court

There shall be at any proceedings of a court martial or unit disciplinary committee the following officers appointed by the High Command or any other authority as may be authorised in that behalf by the High Command—

- (a) a secretary who shall record all the proceedings of the court;
- (b) an advocate or, in the case of a unit disciplinary committee, a para-legal who shall sit on and advise the court during its proceedings on the law and procedure; and
- (c) a prosecutor.

201. Ineligibility to serve on field court martial

The following persons shall not qualify to sit as members of a field court martial—

- (a) the prosecutor;
- (b) a witness for the prosecution;
- (c) a provost officer; or
- (d) any person who prior to the proceedings of the court martial participated in the investigation of the case against the person charged.

202. Jurisdiction of civil court

Nothing in this Act shall affect the jurisdiction of any civil court to try a person for an offence triable by that court.

Part IX – Trials

203. Summary trial

- (1) An accused officer or militant to be tried by summary trial shall be afforded a proper opportunity to prepare himself or herself for the trial and in particular, he or she shall as soon as possible, and in any case not less than twenty-four hours before the trial, be informed of—
 - (a) the charges brought against him or her;
 - (b) the fact that he or she is to be subjected to summary trial; and
 - (c) his or her right to elect to be tried by court martial and he or she shall be informed about the implications of either choice and in particular that where he or she opts for summary trial it means he or she is opting for trial without having counsel of his or her own choice.
- (2) The accused officer or militant at a summary trial shall not be represented by counsel and there shall be no legal officer at such trial but both the accused and the summary trial authority may seek legal advice out of court.
- (3) Before his or her arraignment, the accused officer or militant shall again be informed by the summary trial authority of his or her right to elect to be tried by court martial and he or she shall be informed of the implications of a choice to be tried by court martial or summary trial as described in subsection (1)(c) and his or her response shall be recorded in the record of the proceedings of the summary trial authority in his or her own words.
- (4) There shall be no prosecution side at a summary trial.
- (5) The accused officer or militant shall be arraigned by the summary trial authority who shall also examine witnesses for the State and question witnesses for the defence.
- (6) Evidence at a summary trial shall be given on oath or affirmation, as the case may be.
- (7) If at the conclusion of the case for the State, the summary trial authority determines that he or she has a case to answer, the accused officer or militant shall have the right to give evidence on oath, to make an unsworn statement or to remain silent without, in the latter two instances, being subjected to questioning by the summary trial authority.
- (8) The summary trial authority shall have power, at any stage of the trial, to dismiss the charge.
- (9) The summary trial authority shall consider all the evidence and may dismiss the charge or remand the accused officer or militant for further investigation or for trial by a court martial.
- (10) The summary trial authority may find the accused officer or militant guilty of—
 - (a) the offence charged and on the particulars given in the charge sheet;
 - (b) the offence charged on a special finding of guilty; or
 - (c) a related less serious offence.
- (11) If the summary trial authority concludes during the trial that his or her powers of punishment would, if the accused officer or militant were found guilty, prove inadequate having regard to the gravity of the offence, he or she shall not pronounce a finding but shall adjourn the case and remand the accused for trial by a unit disciplinary committee or court martial.
- (12) Subject to subsection (11), if the summary trial authority is satisfied that the accused is guilty, he or she shall call for the conduct sheet of the accused and determine sentence on considerations of—
 - (a) the gravity of the offence;
 - (b) the character and previous conduct of the accused; and

- (c) any consequence of the finding or sentence.

204. Additional powers of summary trial authority

A summary trial authority shall have the following additional powers—

- (a) to set aside a sentence imposed at a summary trial;
- (b) clemency;
- (c) to mitigate punishment; and
- (d) to suspend all or part of a punishment.

205. Appeals from decisions of summary trial authority

- (1) An appeal from a decision of a summary trial authority shall lie only to the commanding officer or the immediate superior in command of the summary trial authority and, in particular, an appeal from a decision of a superior authority in exercise of original jurisdiction shall lie to the Commander-in-Chief.
- (2) The appeal shall be in writing and shall be submitted through the summary trial authority that presided at the trial at which the decision appealed against was made.
- (3) The summary trial authority shall endorse the appeal to his or her commanding officer or immediate superior in command and shall include—
 - (a) a statement of facts including what was included in the investigations, what was raised at the summary trial and any other relevant information;
 - (b) copies of documents and witness statements which were shown or discussed at the summary trial or otherwise relevant; and
 - (c) a copy of the appellant's conduct sheet.

206. Action on appeal

On receipt of an appeal under section 205, the commanding officer or the immediate superior in command of the summary trial authority shall refer the appeal to an advocate for advice and he or she or the Commander-in-Chief, as the case may be, if necessary, take corrective action or order a retrial.

207. Principles of civil court to be observed generally

Except as otherwise expressly provided in this Act and any regulations made under this Act, the rules of evidence and procedure to be observed in proceedings before a unit disciplinary committee or court martial shall, as far as is practicable, be the same as those observed in proceedings before a civil court.

208. No limitation on jurisdiction

A person alleged to have committed a service offence may be charged, dealt with and tried under military law whether the alleged offence was committed in Uganda or out of Uganda.

209. Place of trial

Every person alleged to have committed a service offence may be charged, dealt with and tried under this Act either in Uganda or out of Uganda.

210. Trials to be public

- (1) Subject to subsections (2) and (3), military courts shall be public and, to the extent that accommodation permits, the public shall be admitted to the trial.
- (2) Where a military court considers that it is expedient in the interest of public safety, defence or public morals that the public should be excluded during the whole or any part of a trial, the court may make an order to that effect, and any such order shall be recorded in the record of the proceedings of the military court.
- (3) A witness shall not be admitted to a trial until he or she is called upon to give evidence or by specific leave of the military court and the court may at any time require the witness to withdraw after having given his or her evidence.

211. View by military court

A military court may, where it considers it necessary, view any place, thing or person.

212. Witnesses and advocates at military courts

- (1) The commanding officer or officer commanding of the accused person and a military court shall take all necessary action to procure the attendance of the witnesses whom the prosecutor or the accused person or both request to be called and whose attendance can, having regard to the exigencies of the service, reasonably be procured.
- (2) Nothing in subsection (1) shall require the procurement of the attendance of any witnesses, the request for whose attendance is deemed by the commanding officer, officer commanding or the military court, to be frivolous or vexatious.
- (3) Where a request by the accused person for the attendance of a witness is deemed to be frivolous or vexatious, the attendance of that witness, if his or her attendance, having regard to the exigencies of the service, can reasonably be procured, shall be procured if the accused person pays in advance the fees and expenses of the witness at the rates prescribed in regulations made under this Act.
- (4) If at the trial, the evidence of the witness proves to be relevant and material, the military court shall order the accused person to be reimbursed in the amount of the fees and expenses of the witness paid under subsection (3).
- (5) Nothing in this section limits the right of the accused person to procure and produce at the trial at his or her own expense such witnesses as he or she may desire.
- (6) Every person required to give evidence before a military court may be summoned by a summons signed by a member of the unit disciplinary committee or court martial, or the summary trial authority, as the case may be.
- (7) A person summoned under subsection (6) may be required to bring with him or her and produce at a military court any documents or thing in his or her possession or under his or her control relating to the matters in issue before the military court.
- (8) A witness summoned or attending to give evidence before a military court shall be paid such witness fees and allowances for expenses of attendance as are prescribed by regulations made under this Act.
- (9) Any conduct of an advocate before a unit disciplinary committee or court martial that would be liable to censure or be contempt of court if it took place before a civil court is likewise liable to censure or is contempt of court in the case of a unit disciplinary committee or court martial; and the provisions governing the procedure of unit disciplinary committees or courts martial are binding upon an advocate appearing before a unit disciplinary committee or court martial; and wilful disobedience of the provisions shall, if persevered in, be deemed to be contempt of court punishable in accordance with section 169.

- (10) Upon receipt of a certificate signed by a member of a unit disciplinary committee or court martial, or a summary trial authority, as the case may be, that a witness has not appeared before a military court in obedience to a summons issued under this section, a civil court shall, on proof of the proper service of the summons at a reasonable time before, issue a warrant to bring the witness before the civil court at a time and place specified in the warrant.
- (11) When a witness is arrested under a warrant issued under subsection (10), the civil court may, on his or her furnishing security by recognisance to the satisfaction of the civil court for his or her appearing before the military court at the hearing of the case, order him or her to be released from custody, or shall, on his or her failure to furnish the security, order him or her to be detained for production at the hearing.
- (12) Without prejudice to any provisions of this section, any person in contempt of a military court, may be removed from the court by order signed by a member of the unit disciplinary committee or court martial, or the summary trial authority, as the case may be.

213. Provisions where accused found insane

- (1) Where, on the trial of an accused person by a military court, it appears to the court that the accused person is by reason of insanity unfit to stand his or her trial, the court shall so find, and if the finding is confirmed in accordance with the following provisions, the accused person shall be kept in custody in such manner as may be provided by or under rules made under this section until the directions of the Minister are known or until any earlier time at which the accused is fit to stand his or her trial.
- (2) Where on the trial of a person by a military court, it appears to the court that the evidence is such as, apart from any question of insanity, to support a finding that the accused was guilty of any offence, but that at the time of the acts or omissions constituting that offence the accused was insane so as not to be responsible for his or her actions in accordance with the Penal Code Act, the court shall find that the accused was guilty of that offence but was insane at that time and the accused shall then be kept in custody in such a manner as may be provided by or under rules or orders made or given under this section until the directions of the Minister are known.
- (3) In the case of a finding under subsection (2), the Minister may make rules and give orders for the safe custody of the accused in a place and in a manner as the Minister thinks fit.
- (4) In the discharge of his or her functions under this section, the Minister shall consult the Minister responsible for justice.

214. *Autrefois acquit* and *autrefois convict*

- (1) A person, in respect of whom a charge of having committed a service offence has been dismissed, or who has been found guilty or not guilty either by a military court or civil court on a charge of having committed any offence, shall not be tried again by any court in respect of that offence or any other offence of which he or she might have been found guilty on that charge.
- (2) Nothing in subsection (1) shall affect the validity of a new trial ordered under section 234 or 238.

215. Proceedings to be deemed judicial proceedings

Any proceedings under this Act either before a military court, or before a board of inquiry where evidence is required to be given on oath or on making a solemn affirmation, shall be deemed to be judicial proceedings for the purposes of Chapter X of the Penal Code Act providing for offences relating to the administration of justice.

216. Orders of court

- (1) After the conviction or acquittal of a person, a military court may make any order that may be made by a civil court in exercise of its criminal jurisdiction.

- (2) A unit disciplinary committee or court martial may enforce an order made under subsection (1) in the same way and manner as civil courts enforce an order made by a civil court in exercise of its criminal jurisdiction.

217. Bail

Subject to sections 229 and 246, a military court may grant bail to a person charged with a service offence on the same considerations that govern the grant of bail in civil courts.

218. Cases not covered by Act

In any case not provided for by this Act or regulations made under this Act regarding its proceedings, a summary trial authority shall adopt such course as appears most likely to do justice.

Part X – Punishments

219. Scale of punishments

- (1) The following punishments may be imposed in respect of service offences—
- (a) death;
 - (b) imprisonment for two years or more;
 - (c) dismissal with disgrace from the Defence Forces;
 - (d) imprisonment for a term not exceeding two years;
 - (e) dismissal from the Defence Forces;
 - (f) detention;
 - (g) reduction in rank;
 - (h) communal labour;
 - (i) forfeiture of seniority;
 - (j) suspension;
 - (k) severe reprimand;
 - (l) reprimand;
 - (m) caution;
 - (n) fine;
 - (o) stoppages; and
 - (p) such other minor punishments as may be prescribed.
- (2) Each punishment specified in subsection (1) shall be deemed to be a punishment less than any other punishment preceding it in that subsection.
- (3) Except where a mandatory sentence is prescribed under this Act, a military court may impose a less penalty in accordance with the scale of punishments in this section.
- (4) The punishment of imprisonment shall be subject to the following conditions—
- (a) every person who on conviction for a service offence is liable to life imprisonment or imprisonment for a term of years may be sentenced to imprisonment for a shorter term; and

- (b) a sentence of imprisonment for two years or more imposed upon any person subject to military law, shall be deemed to include dismissal with disgrace from the Defence Forces, whether or not the last mentioned punishment is passed by the unit disciplinary committee or court martial.
- (5) Where a unit disciplinary committee or court martial imposes a punishment of dismissal with disgrace from the Defence Forces upon an officer or a militant, the court may, in addition, notwithstanding any other provision of this Part, impose a punishment of imprisonment not exceeding two years.
- (6) A person upon whom a punishment of dismissal with disgrace from the Defence Forces has been carried out shall not, except in an emergency or unless that punishment is subsequently set aside or altered, be eligible to serve Uganda again in any military capacity.
- (7) The punishment of detention shall be subject to the following conditions—
 - (a) detention shall not exceed two years and a person sentenced to detention shall not be subject to detention for more than two years consecutively by reason of more than one conviction; and
 - (b) in the case of a warrant officer or non-commissioned officer in the Defence Forces, a sentence that includes a punishment of detention shall be deemed to include a punishment of reduction in rank to a rank which under regulations he or she can be reduced to.
- (8) The punishment of reduction in rank shall apply to officers, warrant officers and non-commissioned officers.
- (9) The punishment of reduction in rank shall—
 - (a) not involve reduction to a rank lower than that to which under regulations the offender can be reduced; and
 - (b) in the case of an officer—
 - (i) not involve reduction to a rank lower than second lieutenant; and
 - (ii) be subject to confirmation by the High Command.
- (10) Where an officer or a militant has been sentenced to forfeiture of seniority, the military court imposing the punishment shall, in passing sentence, specify the period for which seniority is to be forfeited.
- (11) A fine shall be imposed in a stated amount and shall not exceed four months' pay and the terms of payment of a fine may be determined by the court imposing the fine.
- (12) Stoppages shall be effected in the manner prescribed in regulations made under this Act.
- (13) Where a person is under a sentence imposed by a unit disciplinary committee or court martial which includes a punishment involving imprisonment and he or she is subsequently convicted and sentenced to another term of imprisonment, both terms of imprisonment shall, from the date of the pronouncement of the new sentence, run concurrently, but the punishment higher in the scale of punishments shall be served first.
- (14) A unit disciplinary committee or court martial shall, in sentencing a civilian convicted of an offence under this Act, pass such sentence in the scale of punishments with such modifications as the court may deem appropriate in the circumstances.

Part XI – Post trial matters

220. Committal

- (1) Where a punishment of imprisonment is to be put into execution, the service prisoner shall as soon as practicable, be committed to a civil prison, to undergo his or her punishment according to law.
- (2) Where a punishment of detention is to be put into execution, the service detainee shall, as soon as practicable, be committed to a military detention barracks or such other place as the court may direct, to undergo his or her punishment.

221. Temporary removal from incarceration

A service prisoner or a service detainee may, by an order made by a military court, be removed temporarily from the place to which he or she has been committed for such a period as may be specified in that order but, until his or her return to that place, he or she shall be retained in service custody or civil custody, as the occasion may require; and no further committal order is necessary upon his or her return to that place.

222. Rules of civil prisons to apply

While a service prisoner is undergoing punishment in a civil prison, he or she shall be dealt with in the same manner as other prisoners in the place where he or she is undergoing punishment and all the rules applicable in respect of a person sentenced by a civil court to imprisonment including the rules for remission for good conduct shall, insofar as circumstances permit, apply accordingly.

223. Validity and correction of committal documents

- (1) The custody of a service prisoner or service detainee is not illegal by reason only of informality or error in or in respect of a document containing a warrant, order or direction issued under this Act, or by reason only that that document deviates from the prescribed form.
- (2) Any document referred to in subsection (1) may be amended appropriately at any time by the authority that issued the document in the first instance or by any other authority empowered to issue documents of that nature; and no action shall lie in respect of anything done by any person in pursuance of a service sentence of imprisonment or detention under that document.

224. Execution of warrants

Every superintendent or other person in charge of a civil prison shall take cognisance of any warrant of committal purporting to be signed by a member of a unit disciplinary committee or court martial and shall receive and detain, and in the case of a sentence of death, carry out the sentence, according to the terms of that warrant and this Act, and shall confine the offender until discharged or delivered in due course of law.

Part XII – Appeals

225. Jurisdiction of appellate courts

- (1) A party to the proceedings of a unit disciplinary committee or court martial other than a field court martial who is not satisfied with its decision shall have the right to appeal to an appellate court on any or all of the following matters—
 - (a) the legality or propriety of any or all the findings;
 - (b) the legality of the whole or part of the sentence;
 - (c) the severity or leniency of the sentence.

- (2) Subsection (1) shall not affect the operation of any sentence of a unit disciplinary committee or court martial, other than a sentence of death imposed by a court martial, not being a field court martial.
- (3) In the case of a sentence of death imposed by a court martial other than a field court martial, the sentence shall not be executed until after the expiration of the time within which notice of intention to appeal against conviction may be given and, if notice of intention to appeal is duly given, the sentence shall not be executed until the appeal has been determined or abandoned.

226. Advice as to right of appeal

- (1) The unit disciplinary committee or court martial shall, at the conclusion of the trial, inform the parties to its proceedings as to their right of appeal.
- (2) Where a party mentioned in subsection (1) has presented the notice of appeal provided for in section 227, a copy of the record of the proceedings of the unit disciplinary committee or court martial in respect of whose decision the appeal is to be made, shall be delivered to that party as soon as practicable after the presentation of the notice of appeal.

227. Form of appeal

- (1) Every appeal shall be in the form of a notice of appeal followed by a memorandum of appeal.
- (2) A notice of appeal shall be lodged with the registrar within such period after the delivery by a unit disciplinary committee or court martial of the decision in respect of which the appeal is lodged as shall be prescribed.
- (3) A memorandum of appeal shall be lodged with the registrar within such period after the appellant has been availed a copy of the record of the proceedings of the unit disciplinary committee or court martial against whose decision the appeal is lodged as shall be prescribed.
- (4) A memorandum of appeal shall specify the grounds of appeal.
- (5) The appellate court may, for good cause shown, on an application made for the purpose, extend the period referred to in subsection (2).

228. Appellant in prison

Where an appellant is in prison, he or she may present his or her notice of appeal or memorandum of appeal to the officer in charge of the prison and the officer in charge shall immediately forward the notice of appeal or memorandum of appeal to the registrar of the appellate court.

229. Bail pending appeal

In exceptional circumstances, and on such conditions as it may impose, the appellate court may grant bail pending appeal.

230. Notice of hearing

- (1) The registrar shall cause notice to be given to the appellant and to the respondent of the time and place at which an appeal will be heard, and shall furnish the respondent with a copy of the notice of appeal and memorandum of appeal, and of the record of the proceedings of the unit disciplinary committee or court martial in respect of which the appeal has been lodged.
- (2) At the hearing of an appeal, the appellate court shall hear the appellant and the respondent or their advocates.

231. Supplementary powers of the appellate court

- (1) For the purposes of this section, the appellate court may, if it deems it necessary or expedient in the interest of justice, order the production of any documents, exhibits or other thing connected with the proceedings, the production of which appears to the appellate court necessary for the determination of the appeal, and may issue any warrants necessary for enforcing the orders or sentences of the court.
- (2) Where the appellate court considers that additional evidence is necessary, it may record its reasons for doing so and may take such evidence itself.
- (3) The appellant shall be present when additional evidence is taken under this section.
- (4) Evidence taken under this section shall be taken as if it were evidence at the trial before the unit disciplinary committee or court martial from whose decision the appeal arose.
- (5) Where the appellate court deems it necessary so to do in dealing with an appeal, it may call for and receive from the unit disciplinary committee or court martial a report on any matter connected with the appeal.

232. Non-compliance

- (1) Non-compliance, with this Act or regulations made under this Act, by an appellant shall not prevent further prosecution of his or her appeal, unless the appellate court otherwise directs.
- (2) The registrar shall immediately notify the appellant of any directions given by the appellate court under this section if the appellant was not present at the time when the directions were given.

233. Disallowing appeal

Notwithstanding anything in this Part, the appellate court may disallow an appeal if, in the opinion of the court expressed in writing, there has been no substantial miscarriage of justice.

234. Setting aside finding, etc.

- (1) Upon the hearing of an appeal in respect of the legality or propriety of a finding on any charge, the appellate court may—
 - (a) set aside a finding of guilty and direct a finding of not guilty to be recorded in respect of that charge;
 - (b) set aside a finding of not guilty and direct a finding of guilty to be recorded in respect of that charge; or
 - (c) direct a new trial on that charge, in which case the appellant or the respondent, as the case may be, shall be tried again as if no trial on that charge had been held.
- (2) Where the appellate court has set aside a finding of guilty and no other finding of guilty remains, the whole sentence shall cease to have force and effect.
- (3) Where the appellate court has set aside a finding of not guilty and recorded a finding of guilty and there is no other existing finding of guilty, the appellate court may—
 - (a) impose such punishment as it considers appropriate; or
 - (b) refer the case back to the unit disciplinary committee or court martial which tried the case for sentencing.

- (4) Where the appellate court has set aside a finding of guilty and another finding of guilty remains, the appellate court shall—
- (a) affirm the punishment imposed by the unit disciplinary committee or court martial if the unit disciplinary committee or court martial could legally have imposed that punishment upon the finding of guilty that remains; or
 - (b) subject to such conditions as may be prescribed, substitute for the punishment imposed by the unit disciplinary committee or court martial, such new punishment as the appellate court considers appropriate.
- (5) Where the appellate court has set aside a finding of not guilty and recorded a finding of guilty and there is existing another finding of guilty, the appellate court shall—
- (a) affirm the punishment imposed by the unit disciplinary committee or court martial if it is satisfied of the legality and degree of the sentence; or
 - (b) subject to such conditions as may be prescribed, substitute for the punishment imposed by the unit disciplinary committee or court martial such new punishment as the appellate court considers appropriate.
- (6) Where, on an appeal, the appellate court is satisfied that the unit disciplinary committee or court martial—
- (a) could, on the charge, have found the accused guilty under section 180 of some other offence; or
 - (b) could have found him or her guilty of some other offence on any alternative charge that was laid, and on the actual finding it appears to the appellate court that the facts proved him or her guilty of that other offence,
- the appellate court may, instead of allowing or dismissing the appeal, as the case may be, substitute for the finding of the unit disciplinary committee or court martial, a finding of guilty of that other offence.
- (7) Where, under subsection (3), (4) or (5) a new punishment is substituted, the punishment imposed by the unit disciplinary committee or court martial shall then cease to have effect, and section 241 shall apply to the new punishment.

235. Punishments subject to mitigation

Where—

- (a) a punishment has been imposed by the appellate court under section 234(3); or
- (b) a punishment included in a sentence has been dealt with under section 234(4) or (5);

the punishment imposed or the new punishment, as the case may be, shall be subject to mitigation, commutation, remission or suspension in the same manner and to the same extent as if it had been passed by the unit disciplinary committee or court martial from whose decision the appeal arose.

236. Quashing findings of unit disciplinary committee or court martial

- (1) The appellate court may quash any finding made by a unit disciplinary committee or court martial.
- (2) Where, after a finding of guilty has been quashed, no other finding of guilty remains, the whole of the sentence passed by the unit disciplinary committee or court martial shall cease to have force and effect.
- (3) Where after a finding of guilty has been quashed, another finding of guilty remains, and any punishment included in the punishment passed by the unit disciplinary committee or court martial is in excess of the punishment authorised by this Act in respect of the finding of guilty

which remains, or is, in the opinion of the appellate court unduly severe, the appellate court shall, subject to such conditions as may be prescribed, substitute such new punishment as it considers appropriate.

- (4) Where a finding of not guilty has been quashed under this section and a finding of guilty recorded, the court shall proceed as in section [234\(3\)](#) or [\(5\)](#).

237. Substituting of findings for original findings of unit disciplinary committee or court martial

- (1) The appellate court may—
- (a) substitute a new finding for any finding of guilty made by a unit disciplinary committee or court martial, that is illegal or cannot be supported by the evidence if the new finding could validly have been made by the unit disciplinary committee or court martial on the charge and if it appears that the unit disciplinary committee or court martial was satisfied on the facts establishing the offence specified or involved in the new finding;
 - (b) substitute for the finding of guilty made by a unit disciplinary committee or court martial a new finding of guilty of some other offence if the unit disciplinary committee or court martial could, on the charge, have found the offender guilty—
 - (i) under section 178 of that other offence; or
 - (ii) of that other offence on any alternative charge that was laid, and it appears that the facts proved him or her guilty of that other offence.
- (2) Where a new finding has been substituted for a finding made by a unit disciplinary committee or court martial and any punishment included in the sentence passed by the unit disciplinary committee or court martial is in excess of the punishment authorised by this Act in respect of the new finding or is, in the opinion of the appellate court unduly severe, the appellate court shall, subject to such conditions as may be prescribed, substitute such new punishment as it considers appropriate.

238. New trial

- (1) Where, on an appeal, the appellate court considers that a new trial is advisable by reason of an irregularity in law in the proceedings before the unit disciplinary committee or court martial, it may set aside a finding whether of guilty or not guilty, and direct a new trial; and the accused shall be tried again for that offence as if no previous trial had been held.
- (2) Where at a new trial held under this section a person is found guilty—
- (a) if any new punishment includes a term of imprisonment, there shall be deducted from that term any time during which the offender had been imprisoned following the pronouncement of the previous sentence; and
 - (b) if any new punishment is in the same paragraph in the scale of punishments specified in section [219\(1\)](#) as the punishment imposed by the unit disciplinary committee or court martial in the first instance, the new punishment shall not be in excess of the previous punishment.
- (3) The appellate court may dispense with any new trial directed under this section or under section [234](#).

239. Substitution of punishments

Where a unit disciplinary committee or court martial has passed a sentence in which is included an illegal punishment, the appellate court may, subject to such conditions as may be prescribed, substitute for the illegal punishment such new punishment as it considers appropriate.

240. Mitigation of punishments, etc.

The appellate court may, subject to such conditions as may be prescribed, mitigate, commute, remit or enhance any or all of the punishments included in a sentence passed by a unit disciplinary committee or court martial.

241. Effect of new punishment

- (1) Where under the authority of this Act, a new punishment, by reason of substitution, commutation or enhancement replaces a punishment imposed by a unit disciplinary committee or court martial, the new punishment shall have force and effect as if it had been imposed by the unit disciplinary committee or court martial in the first instance, and accordingly, this Act shall apply.
- (2) Where a new punishment involves imprisonment, the term of the new punishment shall be reckoned from the date of substitution, commutation or enhancement, as the case may be.

242. Non-derogation of powers

Nothing in the preceding provisions of this Part shall be in derogation of the powers conferred under this Act to quash findings or alter findings and sentences.

243. Saving of powers of President

Nothing in this Act shall be construed as restricting or regulating the exercise of the prerogative of mercy conferred on the President by Article 121 of [the Constitution](#).

244. Rules of appeal procedure

- (1) The court martial appeal court may, with the approval of the Minister, make rules not inconsistent with this Act in respect of the following with regard to proceedings of an appellate court—
 - (a) the practice and procedure to be observed at hearings;
 - (b) the conduct of appeals;
 - (c) the production of the record of the proceedings of any unit disciplinary committee or court martial in respect of which an appeal is made;
 - (d) the production of all other documents and records relating to an appeal;
 - (e) the extent to which new evidence may be introduced;
 - (f) the circumstances in which the appellant may attend or appear before the appellate court on the hearing of his or her appeal, but no such rules shall deprive an appellant of the right to be present on the hearing of his or her appeal from a sentence of death;
 - (g) provision for and payment of fees of counsel for an appellant other than the State; and
 - (h) the circumstances in which an appeal may be considered to be abandoned for want of prosecution, and the summary disposition by the appellate court of such appeals, and of appeals showing no substantial grounds.
- (2) The rules made under this section shall be published in the *Gazette*.

Part XIII – Revision

245. Power of court to call for record and petitions

- (1) The General Court Martial may call for and examine the record of any proceedings before a summary trial authority or a unit disciplinary committee for the purpose of satisfying itself as to the correctness, legality or propriety of any finding, sentence or order recorded or passed, and as to the regularity of any proceedings of any such summary trial authority or unit disciplinary committee.
- (2) The General Court Martial may exercise its powers under subsection (1) on its own motion or on a petition by any person aggrieved by any finding, sentence or order made or imposed by a summary trial authority or unit disciplinary committee.
- (3) No petition under this section shall be entertained if in case of the proceedings of—
 - (a) a summary trial authority, the petitioner appealed under section 205; or
 - (b) a unit disciplinary committee, the petitioner could have appealed and has not appealed against any finding, sentence or order referred to in subsection (2).

246. Powers of court on revision

In or during the exercise of its powers under section 241(1), the General Court Martial—

- (a) may exercise any of the powers conferred on the General Court Martial as an appellate court by this Act;
- (b) may, pending the final determination of the case, release any convicted person on bail;
- (c) may, if it thinks fit, call for and receive from the summary trial authority or unit disciplinary committee before which the case was heard, a report on any matter connected with the case;
- (d) shall not make any order to the prejudice of an accused person unless he or she has had an opportunity to be heard in his or her own defence.

247. Discretion of court as to hearing of parties

- (1) Except as provided in section 246(d), no party has any right to be heard before the General Court Martial when exercising its powers of revision.
- (2) The General Court Martial may, if it thinks fit, when exercising its powers of revision, hear any party; and nothing in this section shall be deemed to affect section 246(d).

248. Court order to be certified to lower court

When a case is revised by the General Court Martial it shall certify its decision or order to the summary trial authority or unit disciplinary committee by which the finding, sentence or order so revised was recorded or passed; and the summary trial authority or unit disciplinary committee to which the decision or order is so certified shall then make such orders as are conformable to the decision or order so certified; and if necessary the record shall be amended in accordance with the order.

Part XIV – General

249. Expenses of military courts

The administrative expenses of military courts, including salaries, allowances, gratuities and pensions payable to or in respect of members of military courts martial other than field courts martial, shall be charged on the Consolidated Fund.

250. Regulations

- (1) The Minister may, by statutory instrument, after consultation with the Defence Forces Council, make such regulations as may be necessary or convenient for ensuring the discipline and good administration of the Defence Forces and generally for the better carrying out of the provisions of this Act.
- (2) Without prejudice to the general effect of subsection (1), the Minister may make regulations under that subsection in respect of—
 - (a) such matters as are required under this Act to be prescribed or are authorised or required under this Act to be made by regulations;
 - (b) the disposal of any property for the Defence Forces and the application of the proceeds, if any, of the disposal;
 - (c) conditions of service in addition to those contained in this Act;
 - (d) the liability of officers and militants;
 - (e) the collection, administration and distribution of the service estates of officers and militants and the disposal of the personal effects of absented officers and militants;
 - (f) the prohibition or control of dangerous flying;
 - (g) the vaccination and inoculation of officers and militants and the provision of other immunisation procedures for the officers and militants;
 - (h) the control of the handling of dangerous substances by officers and militants;
 - (i) the conditions subject to which certain punishments may be imposed;
 - (j) the custody of officers and militants arrested or detained and the duties of the persons in whose charge those officers and militants have been placed;
 - (k) the date of the commencement of terms of detention under this Act and the periods to be left out or taken into account in the computation of those terms;
 - (l) the fees to be charged for any service performed by any person for the purposes of this Act;
 - (m) the arrest and custody of deserters and persons absent without leave and any matter connected with or incidental to such arrest and custody;
 - (n) the procedure to be observed in proceedings before military courts and the payment of remuneration to witnesses;
 - (o) the execution of officers and militants sentenced to death by the Field Courts Martial; and
 - (p) the procedure to be observed in the conduct of meetings under this Act.
- (3) The regulations made under this Act shall be laid before Parliament within sixty days of their coming into force.

251. Orders and instructions

- (1) The Chief of Defence Forces may issue orders and instructions not inconsistent with this Act or regulations made under this Act—
 - (a) in the discharge of his or her duties under this Act; or
 - (b) in explanation or implementation of the regulations.
- (2) A commanding officer shall issue standing orders which shall include orders that are peculiar to his or her station or unit.
- (3) An officer in temporary command of a station or unit shall not issue standing orders, nor alter those already in force, without reference to the officer in permanent command or to superior authority.
- (4) A commanding officer when he or she is away from his or her station or unit, shall not issue standing orders.
- (5) A commanding officer shall issue unit orders as required for the promulgation of information and direction to all officers and militants under his or her command.
- (6) The form of unit orders shall be as the Chief of Defence Forces may prescribe.
- (7) An officer or a militant shall normally be warned of all duties other than ordinary routine duties in unit orders.
- (8) Unit orders shall be—
 - (a) posted in suitable places in the station or unit so that they may be available to officers and militants; and
 - (b) distributed as the Chief of Defence Forces may direct.

252. Power to amend Schedules

- (1) The Minister may, by statutory instrument, with the approval of Cabinet, amend Schedules 1, 2, 3, 4, 5, 6 and 8 to this Act.
- (2) The Minister may, by statutory instrument, after consultation with the Defence Forces Council, amend Schedule 7 to this Act.

Schedule 1 (Sections 1, 252(1))**Currency point**

A currency point is equivalent to twenty thousand shillings.

Schedule 2 (Sections 13(1)(b), 252(1))**Senior officers as at 26th January, 1986**

1. Maj. General Mugisha Muntu
2. Maj. Gen. Joram Mugume
3. Maj. Gen. Ivan Koreta
4. Brig. Jim K. Muhwezi
5. Brig. Steven Kashaka
6. Col. Kahinda Otafiire

7. Col. Pecos Kutesa
8. Col. Julius Kihanda
9. Col. Peter Kerimu
10. Lt Col. Fred Mwesigye
11. Lt Col. Andrew Lutaaya
12. Lt Col. Gyagenda Kibirango
13. Lt Col. Ahmed Kashilingi
14. Lt Col. Samson Mande
15. Lt Col. Amin Izaruk

Schedule 3 (Sections 14(1)(c), 252(1))

Members of High Command as at 26th January 1986

1. (Rtd) Gen. Yoweri Kaguta Museveni
2. Lt Gen. Elly Tumwine
3. Lt Gen. Salim Saleh Akandwanaho
4. Lt Gen. David Tinyefuza
5. Honorary Brig. Eriya Kategaya
6. Brig. Rtd Matayo Kyaligonza

Schedule 4 (Sections 51(8), 252(1))

The Republic of Uganda

Statement of Commission

I _____ President of the Republic of Uganda and Commander-in-Chief of the Uganda Peoples' Defence Forces, by virtue of the authority entrusted to me by [the Constitution](#) of the Republic of Uganda and the law governing the defence of Uganda, do hereby commission you to be (an) officer(s) of the Uganda Peoples' Defence Forces of the rank(s) of _____ from this _____ day of _____

Signed this _____ day of _____

President.

Schedule 5 (Sections 52, 252(1))

The Republic of Uganda

Oath of Allegiance

I, _____ swear by the almighty God/do solemnly and sincerely declare and affirm that I will be faithful to and bear true allegiance to the President and the Republic of Uganda and that I will, as in duty bound, honestly

and faithfully defend him/her and [the Constitution](#) of the Republic of Uganda against all enemies, and I will observe and obey all lawful orders of the officers set over me. I promise to teach and uphold in all officers and militants that may from time to time be placed under my command good discipline, bravery and trust in the Country, so help me God.

Signed this _____ day of _____

Officer/Militant

Schedule 6 (Sections 52, 252(1))

The Republic of Uganda

Oath of Secrecy

I _____ swear by almighty God/do solemnly and sincerely declare and affirm that I will at all times respect and uphold the secrecy of any information or material that comes into my possession by virtue of my being a member of or in association with the Uganda Peoples' Defence Forces and I will in no way whatsoever divulge the same to any unauthorised person, so help me God.

Signed this _____ day of _____

Officer/Militant

Schedule 7 (Sections 116, 252(2))

Code of conduct for Defence Forces

1. Helping members of public

A member of the Defence Forces shall—

- (a) offer help to members of the public when he or she finds them engaged in productive work, if he or she has time;
- (b) where possible, offer emergency medical treatment to members of the public who are in the territory of his or her unit;
- (c) where possible, offer any other form of assistance to members of the public.

2. Relationship with public

A member of the Defence Forces shall not—

- (a) abuse, insult, beat or in any way provoke any member of the public;
- (b) steal any property or obtain goods by false pretences;
- (c) take anything from a person without paying for it;
- (d) retain anything he or she borrows from any member of the public;
- (e) develop any illegitimate or irresponsible relationship that is contrary to public morality with any person;
- (f) consume alcohol in a public drinking place while he or she is on duty or in uniform or in possession of a weapon;

- (g) take drugs or be found in possession of drugs;
- (h) kill any person who is not an enemy;
- (i) trespass on any person's property;
- (j) make public statements to journalists without proper authorisation;
- (k) attend diplomatic parties or deal with a foreign mission without proper authorisation; or
- (l) give public speeches or broadcast public statements without permission from the appropriate authorities.

3. Higher and lower ranks of Defence Forces

The lower ranks of the Defence Forces shall obey the higher ranks and the higher ranks shall respect the lower ranks.

4. Administration of units

In the administration of any unit of the Defence Forces, democratic centralism, participation and central control shall be followed and without limiting the generality of the foregoing methods, the following methods shall be used—

- (a) holding regular meetings by which officers and militants can air their views and grievances;
- (b) allowing open criticism of mistakes so as to avoid subterranean grumbling; and
- (c) different mistakes or errors should be treated differently depending on their cause.

5. Tendencies injurious to cohesion of Defence Forces

The following tendencies are injurious to the cohesion of the Defence Forces and are prohibited—

- (a) quest for cheap popularity on the part of officers or militants by tolerating wrongs in order to be popular with soldiers;
- (b) liberalism by which the person in authority knows what is right and what is wrong, but due to weak leadership, he or she does not stand firmly on the side of right;
- (c) intrigue and double talk;
- (d) tribalism, nepotism or any other form of sectarianism;
- (e) formation of cliques in the Defence Forces; or
- (f) any form of corruption.

6. Education in Defence Forces

- (1) Political education shall be mandatory so that officers and militants can understand the reasons for the struggle as well as the dynamics of the world, taking into consideration the fact that conscious discipline is better than mechanical discipline.
- (2) Every officer and militant shall strive to master military science in order to gain capability so that the Defence Forces are in a position to defend the people more effectively.
- (3) All commanders shall ensure that all soldiers, depending on particular circumstances, shall at any one time, if not fighting, be studying military science, improving their academic work, taking part in recreational activities, engaged in productive work or resting so that there is no idleness which breeds mischief.

Schedule 8 (Sections 191(1), 252(1))**Offences triable by summary trial authority**

1.	Section 56	Failure to appear before board or produce document
2.	Section 58	False information to board
3.	Section 59	Unauthorised disclosure
4.	Section 129	Offences relating to guard duties
5.	Section 131	Disobeying lawful orders, in circumstances not involving a sentence of death
6.	Section 132	Failure to execute one's duties in circumstances not involving a sentence of death
7.	Section 133	Violence to superior officer
8.	Section 134	Insubordinate behaviour
9.	Section 136	Malingering or maiming
10.	Section 137	Drunkenness
11.	Section 139	Abuse of and violence to inferiors
12.	Section 140	False accusation
13.	Section 141	Quarrels and disturbances
14.	Section 142	Disorders
15.	Section 143	Scandalous conduct by officers, etc.
16.	Section 145	Connivance at desertion

17.	Section 146	Absence without leave
18.	Section 147	False statement in respect of leave
19.	Section 156	Unauthorised use of vehicles
20.	Section 157	Improper driving of vehicles
21.	Section 160	Destruction, loss or improper disposal of property
22.	Section 161	Selling or pawning of decorations
23.	Section 163	Causing fire
24.	Section 165	Negligent or wilful interference with custody
25.	Section 166	Escape from custody
26.	Section 167	Obstruction of arresting officers
27.	Section 168	Unlawful detention of person
28.	Section 170	Disturbance in billets, etc.
29.	Section 171	Offences in relation to documents
30.	Section 178	Conspiracy
31.	Section 187	Irregular detention